

1 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

2 IN AND FOR THE COUNTY OF SONOMA

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5 HON. RAIMA H. BALLINGER, JUDGE COURTROOM 2

6 THE PEOPLE OF THE STATE OF CALIFORNIA,]

]

7 Plaintiffs,]

vs.]

8] No. SCR-28424

MATHEW KENNETH RODRIGUEZ,]

9]

Defendant.]

10 _____]

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12 REPORTER'S TRANSCRIPT OF PROCEEDINGS

13 402 HEARING

14 TESTIMONY OF EDWARD HUDSON

15 January 9, 2001

16 January 10, 2001

17 January 11, 2001

18 - - -

19 A P P E A R A N C E S:

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1 SANTA ROSA, CALIFORNIA

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3 THE COURT: I'll call Rodriguez at this point.

4 MR. ARDEN: Mr. Arden for the People.

5 MR. ANDRIAN: Good morning, Your Honor.

6 Chris Andrian with Mr. Rodriguez. Can he join me at counsel

7 table?

8 THE COURT: He can join you at counsel table. We'll

9 take a minute to get everyone organized.

10 People versus Mathew Rodriguez, SCR-28424. He is

11 present in custody with counsel, Mr. Andrian. Mr. Arden for

12 the People. We're calling this on the minutes day two of the

13 jury trial, since the last time we were in court -- well,

14 before the continuance it was just to find out that

15 Mr. Andrian couldn't make it to court, and we continued it.

16 So we talked yesterday about a hearing today on the

17 information that counsel gave me which is some handwritten

18 pages and some -- looks like computer printouts of --

19 MR. ARDEN: E-mails, Your Honor.

20 THE COURT: -- E-mails. The Court has read and

21 reviewed all of those pages.

22 And at this point, Mr. Arden, I think what I am

23 hearing is that you intend -- it's your wish to introduce

24 these pages into evidence; is that correct?

25 MR. ARDEN: It is.

26 THE COURT: And Mr. Andrian is opposing the
27 admission of these pages for relevancy reasons and also for
28 authentication reasons. How do we want to proceed at this

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1 point?

2 MR. ANDRIAN: Just to clarify the record,
3 Your Honor, essentially, while I guess I am technically
4 opposing, I was more -- in more of a suggesting as an offer
5 of proof as to, A, their relevance; B, their authenticity.
6 And it may be different with regard to each document, and
7 there also may be, at least in my view, reasons that some or
8 all of them may be redacted, but, again, I was more curious
9 to understand what the prosecution's theory of, A, being
10 relevant was and, of course, B, how they were proposing to

11 authenticate first the e-mails and secondly the alleged

12 handwritten documents.

13 Certainly, there are issues as to who wrote them,

14 when they were written, things of that nature that I'd be

15 interested in -- I guess in hearing the prosecutor's theory

16 on why he believes, A, they're relevant, and, B, how he would

17 intend to authenticate them if they are deemed relevant.

18 THE COURT: Mr. Arden.

19 MR. ARDEN: Well, with respect to the e-mail

20 computer-generated documents, we have an investigator,

21 Ed Hudson. At my request, Investigator Hudson examined the

22 computer hard drive seized from the defendant's apartment

23 residence, actually seized by the sheriff's office.

24 In this case, the Court heard a preliminary hearing

25 approximately a year and a half ago on this case, and it is a
26 burglary case and an assault case. And with respect to that,
27 those issues, of course, I have to prove intent, and my --
28 it's our belief and it's my position that these documents,

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1 not only the handwritten documents by the defendant but also
2 e-mail generated documents, are highly probative in this case
3 with regard to intent of the defendant, because they were
4 made sometime in the year, and, in fact, some of them were
5 made days prior to the crime in this particular case.

6 And Mr. Hudson is prepared to testify as an expert.
7 He has been qualified before in Sonoma County Superior Courts
8 as a computer forensic examiner, and he is prepared to

9 testify that he did examine this particular hard drive, the

10 way he did it, the program he used to examine it. We

11 provided, of course, quite a bit of documents, hard copies of

12 information generated through that program.

13 In any case, he is also prepared to testify who he

14 believes is the writer of those particular documents, and he

15 is prepared to testify that he believes that the documents

16 were generated at a specific date. He is prepared to testify

17 why he believes on a particular date, but they are relevant,

18 of course, again because of the issue of intent regarding a

19 burglary in this case.

20 We are not closing any options. Defendant entered a

21 particular house. Not only the e-mails suggest he is going

22 on excursions to remove particular valuables from rich women,

23 he knows that this is a dangerous situation. He goes on to

24 say that. Documents that I have given to the Court, some

25 e-mails to his wife who has been named as a witness by the

26 defense, he's made threats to her that -- let me go back to

27 that -- that he may attack other women, and the first victim

28 in this particular case was, in fact, a woman, a very

5

1 exclusive location and house.

2 So it's a coincidence that he's making reference in

3 his e-mails to rich people, removing them of their, quote,

4 "expensive pebbles" and so forth, and he targeted particular

5 houses, at least a million-dollar house. And, again,

6 focusing on just the e-mail stuff, I don't know if

7 Mr. Andrian wants me to address the handwritten information,

8 but --

9 THE COURT: Let's take the e-mail first.

10 MR. ANDRIAN: May I respond?

11 THE COURT: Yes.

12 MR. ANDRIAN: First of all, I am going to presume

13 that just for the record we are talking about one, two,

14 three, four, five, six, seven, eight, nine -- I have 10 pages

15 of e-mail which on the outside of the e-mail are pages 16,

16 17, 18, 34, 37, 38, 39, 41, 42, and 43. Am I correct that we

17 all have the same e-mails?

18 MR. ARDEN: 44.

19 THE COURT: Can you try it again slowly.

20 MR. ANDRIAN: I'm sorry. 16, 17, 18, 34, 37, 38,

21 39, 41, 42, and 43. Now there may be a 44.

22 MR. ARDEN: Well, there is the top portion of --

23 THE COURT: The Court has got more than what you

24 just read off.

25 MR. ANDRIAN: Oh.

26 MR. ARDEN: And also there are graphics that --

27 MR. ANDRIAN: I am talking about the e-mails.

28 THE COURT: Yeah.

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1 MR. ANDRIAN: You have more than that?

2 THE COURT: Yeah. I've got pages 16, 17 -- do you

3 want to check and see if you have anything else, Mr. Andrian?

4 MR. ANDRIAN: Mr. Arden provided you with a copy,

5 did he not?

6 THE COURT: Yes.

7 MR. ANDRIAN: Hold on just a second, because I have

8 in my file here -- would you go over the pages you have,

9 Your Honor?

10 THE COURT: 16, 17, 18, 32, 33, 34, 36, 37. Then I

11 have a page without a number, but it's got a -- it says 104

12 on it.

13 MR. ANDRIAN: Those are not to the same pages.

14 THE COURT: I have 39, 41, 42, 43, 44, picture of

15 defendant, and then two pages of programming, looks like. I

16 don't know enough about it to know. Looks like a lot of

17 coding to me, and then another digital picture.

18 MR. ANDRIAN: Well, I don't have the same pages, but

19 before we talk about that, I guess my basic concern about the

20 e-mails is this: These would -- e-mails are basically
21 conversations between people. That's the way I see them.
22 They're hearsay, and they are no different than any other
23 conversation that's either written or recorded.

24 And I don't think he can lay a foundation through
25 Mr. Hudson to authenticate these e-mails. That's just his
26 opinion. That doesn't establish any foundation that this
27 conversation was between Mr. Rodriguez and some other person.
28 Only the person to whom he was corresponding with in the

1 e-mails is the person that can lay that foundation, and it's
2 not Mr. Hudson.
3 That's like interpreting records and trying to
4 establish who said what and what the circumstances of that

5 conversation were. He is not a party to that conversation,
6 so he is being asked basically to comment on a conversation
7 between two people, and I don't see that he is in a proper
8 position to authenticate those. And I think the only person
9 who can authenticate those would be the person to whom the
10 message was sent and to whom he was corresponding with. It's
11 pure speculation on his part that Mr. Rodriguez was having a
12 conversation with whomever these were, who prepared these,
13 when they were prepared, who received them, et cetera.

14 I don't see not getting into those portions that I
15 don't have or those portions that I don't think under any
16 theory, even if they could be offered in evidence, are
17 relevant. So I guess I have -- the threshold issue to me is
18 I don't believe Detective Hudson is in a position to

19 authenticate these.

20 THE COURT: Mr. Arden.

21 MR. ARDEN: In this particular case in forensic

22 analysis, actually, computer-generated documents in most

23 respects contained more information than a handwritten

24 document. We may say we can get somebody to look at the

25 handwritten document, and if they are familiar with that

26 person that wrote it, "I have seen that person who wrote

27 that. I have examined it, and I believe this person also

28 generated this through my familiarity with his or her

1 writing." That's always done in court.

2 Now we have computer-generated documents in the

3 '90s, and, of course, at this time in this particular case,

4 there's even more than that. There's references to the

5 defendant's name. There's reference to the defendant's

6 e-mail account. There's a document, a graphic of the

7 defendant on that document -- on that hard drive. There's

8 reference to his wife in that, his physical address, all of

9 these things. The totality of the evidence would clearly

10 suggest that a reasonable person would conclude that he had

11 custody and control of that particular computer.

12 There are only two people that had access to that

13 computer, he and his ex-wife. And if anything, it goes to

14 weight and not admissibility. The jury could look at that

15 and give it whatever weight it wishes, but this is highly

16 relevant, highly probative in his intent up until the time

17 that he was -- as I said, he was generating these documents

18 days before he committed these offenses. And as I said, I've

19 had -- I have Mr. Hudson here prepared to testify, and the

20 Court can listen to his testimony and why he believes and

21 what he has found. He can't say with absolute certainty that

22 Mr. Rodriguez made this particular e-mail, but we can

23 reasonably conclude that he has.

24 And that's for a jury to weigh and consider. As I

25 said, I've called him here today to answer any questions that

26 may be asked of him regarding his analysis of this. As I

27 said, he is well trained in the area, has testified before

28 regarding computer examination. And, again, I know that, of

1 course, counsel wants to keep this out because anything

2 against the defendant is prejudicial, but it is extremely

3 probative. Again, whatever weight that the jury may give to

4 that, it's up to the jury, but it is relevant in this case.

5 This is an unusual burglary case. It's not the

6 typical suspect goes in and steals CDs or a VCR from the

7 house. There's more to it in this particular case.

8 Now, counsel has also put down a psychologist as a

9 witness -- proposed witness in this case, so the more

10 information that is available to a jury, and the jury I think

11 has a right to hear this information. He created it, and it

12 goes to his intent.

13 THE COURT: Well, the Court needs to state that some

14 of this appears to be relevant, so it depends on whether or

15 not there's an appropriate authentication. Some of it,

16 however, as I was going through these pages -- and maybe
17 these are some of the pages that Mr. Andrian doesn't have --
18 do not appear to be relevant at all to this case. So we'd
19 have to go over those as to what pages we were talking about,
20 but I am prepared to hear the testimony of Mr. Hudson at this
21 point.

22 MR. ANDRIAN: I just want to state one other thing
23 for the record. I have no objection. Obviously, he can make
24 his offer of proof through Detective Hudson, but just so
25 maybe I can articulate a little further to the Court my
26 position here. This would really be no different than if --
27 in this case husband and wife were exchanging letters, all
28 right. Detective Hudson couldn't come up -- unless he was

1 being offered as a handwriting expert to testify that this is

2 Mr. Rodriguez's handwriting, this is what he said, and the

3 person who received the letter would have to state, "Yes, I

4 received that."

5 We don't know -- so the authentication issue,

6 Your Honor, is in my view one that he can't -- unless he

7 knows something I don't know, he can't authenticate

8 Mr. Rodriguez, A, as the sender. He can say they were sent

9 on his computer, all right, on a computer that purportedly he

10 had some access to at some point, but I don't think that lays

11 the foundation for admissibility. It doesn't authenticate.

12 It will merely suggest, and that's different than

13 authentication.

14 Certainly, I think if the Court would find some of

15 these portions relevant, there is a legal and fair way to

16 authenticate them, and that is to have the person who was the

17 recipient of them testify. And the reason why that

18 authentication is necessary is because it would allow the

19 cross-examiner in that vein to say, okay, what was going on?

20 You were having discussions, he was e-mailing you, he was

21 e-mailing you back, and then you can put these things into

22 context.

23 THE COURT: How can that be anymore authentication

24 by having that person testify? Your argument is that you are

25 disputing that he sent them.

26 MR. ANDRIAN: I didn't say that. I didn't say that.

27 I'm saying it's not my job to authenticate. It would be like

28 if they tried to hand you a letter and say it's signed by

11

1 Mat Rodriguez. Well, that doesn't authenticate it. It just

2 says that somebody signed something. Saying it's

3 Mat Rodriguez, that doesn't authenticate.

4 I'm saying it needs to be authenticated the proper

5 way. This is not the proper way to authenticate. That's all

6 I'm saying. If they can authenticate it through the proper

7 source, I might say at least to some portions here, but I'm

8 not, and I don't believe I have any legal -- counsel says

9 it's fair for the jury to hear it. Maybe under the right

10 circumstances when the person who was -- who is in a position

11 to say, yes, you know, I received this e-mail at X hour on a

12 certain day, and I responded, and that's my response. Not

13 for Mr. Hudson to be suggesting that that's what occurred

14 when he has no firsthand evidence. He wasn't there.

15 We heard him say two people have access to the

16 computer. I think those are things that in terms of

17 authenticity, we're talking about, you know, a fundamental

18 threshold issue, and it would be no different than if these

19 were handwritten letters. And somebody would have to say

20 that, in fact, was sent by that person because I see the

21 little squiggles and their handwriting, or, yes, I have known

22 this person, and I have seen his or her handwriting 100

23 times, and that's her handwriting.

24 This is an artificial device that could be

25 manufactured by anybody, and for an expert to say that

26 Mr. Rodriguez was the sender of this is pure speculation at

27 this point. There is no foundation.

28 MR. ARDEN: If I could respond to that. To suggest

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1 that I should call some recipient around the world on an

2 e-mail when the very e-mail is on his hard drive with his

3 graphic is absurd. We are talking about something that is

4 within his possession. That's even better than calling some

5 individual that may or may not have even seen him in person.

6 How does he know who he is?

7 We're looking at the totality of the evidence seized

8 at his address, what was on that hard drive, to lead us to

9 believe that it was, in fact, Mr. Rodriguez, and I have given

10 him stacks of information. He knows. He's got copies of all

11 this information that the Court has. And that's why I asked

12 Mr. Hudson to be here, to explain what he did to lead him to

13 believe, and what this program is about, and what it does to

14 sift out and understand a computer, and what is involved in

15 an issue on a crime.

16 THE COURT: I am prepared to hear his testimony.

17 Why don't you call your detective.

18 MR. ARDEN: We call Edward Hudson.

19 THE CLERK: Please raise your right hand.

20 EDWARD HUDSON, PLAINTIFF'S WITNESS,

21 having been first duly sworn, was

22 examined and testified as follows:

23 THE CLERK: Please be seated.

24

25 DIRECT EXAMINATION BY MR. ARDEN

26 MR. ARDEN: Q. Please state your full name and

27 spell the last name.

28 A. Edward W. Hudson, H-U-D-S-O-N.

13

1 Q. What is your occupation?

2 A. Senior investigator with the Sonoma County District

3 Attorney's office.

4 Q. Please explain briefly -- please explain in detail

5 your education, training, and experience regarding forensic

6 computer analysis.

7 MR. ANDRIAN: Is he being offered as an expert

8 witness? Has there been any disclosure that they were

9 intending to call an expert?

10 MR. ARDEN: Yes, I have listed him.

11 MR. ANDRIAN: You listed him, but you haven't

12 designated him as an expert witness, and you provided no CV,

13 no nothing for me to prepare and cross-examine a witness on

14 any subject.

15 Your Honor, I believe that's a requirement under

16 1054.

17 MR. ARDEN: We are talking about an issue of

18 foundation at this point.

19 MR. ANDRIAN: What's his education and training?

20 I'll object as irrelevant.

21 THE COURT: Overruled. You can answer.

22 THE WITNESS: Can you restate the question?

23 MR. ARDEN: Q. Please describe your education,

24 training, and experience regarding forensic computer

25 analysis.

26 A. Yes, sir. I began my training in computer-related

27 crime approximately three years ago, 1997. Since that time,

28 I've attended a 40-hour school in the seizure and examination

14

1 of microcomputers conducted by the Search Group in

2 Sacramento; a 40-hour class regarding the investigation of

3 computer crime also given by the Search Group in Sacramento;

4 an 80-hour course regarding advanced internet and network

5 investigations conducted by the Search Group; an 8 hour

6 school regarding identification and investigation of child

7 pornography conducted by the Search Group.

8 I received an additional 40-hour class in basic

9 Local Area Network investigations conducted by the

10 Search Group, and 40 hours of training by Guidance Software,

11 who is the manufacturers of EnCase, the forensic software

12 suite that I used. I read several books on the subject of

13 computer crime investigation and forensic analysis.

14 I maintain active participation in the High-Tech

15 Crime Cops Computer Digest List Servs, high-tech

16 investigators investigation, and I am pursuing my Bachelor

17 of Science degree in information technology; I'm founding

18 member of the North Bay High-Tech Crimes Investigation Task

19 Force which covers five Bay Area Counties: Sonoma, Marin,

20 Solano, Contra Costa, and Napa County.

21 Q. Can you please describe what the High-Tech Task

22 Force does?

23 A. Our Task Force is charged under the Penal Code with

24 the investigation of crimes relating to high-technology.

25 This can be computer forensics, fraud, child pornography,

26 child exploitation, theft, basically any crime that can be

27 committed by some means of electronic device.

28 Q. What's your experience and education with the

15

1 program you referred to as EnCase?

2 A. I have conducted approximately 12 forensic computer

3 investigations on my own through the use of EnCase and other

4 various software. I have participated in approximately 30 to

5 40 computer forensic investigations assisting other

6 investigators with the Task Force and other agencies.

7 THE COURT: Can you, for the record, just spell

8 EnCase so we know what we're --

9 THE WITNESS: E-N capital C-A-S-E.

10 MR. ARDEN: Q. What is EnCase?

11 A. A software suite manufactured by Guidance Software

12 out of Pasadena that allows an investigator, forensic

13 investigator, to obtain or acquire an exact bit for bit, byte

14 for byte duplicate image of suspected media; that can be a

15 hard drive, a floppy disk, a CD-ROM, a zip disk. And then

16 evaluate that and examine that evidence for the presence or

17 lack of presence of data.

18 Q. Is this program recognized in the forensic

19 investigative community as an appropriate program in an

20 examination of software, hardware, computers?

21 A. Yes, sir, it is. It's generally considered to be
22 the gold standard or the preferred software package. There
23 are additional manual software tools that are used. It is
24 the primary tool used by forensic investigators.

25 Q. What does it do? Can you briefly describe what --
26 how do you use that program?

27 A. The first step in the process would be to acquire an
28 image of the data or the media that you are examining. You

16

1 do this by one of several means. The method used
2 particularly in this case was I have a computer which has a
3 removable drive base, and you put the suspected or questioned
4 media into one of the drive bases along with a blank, freshly

5 wiped hard drive, which means it's devoid of any other data,

6 and you make -- using the software you make a copy.

7 And then in this particular case the suspected hard

8 drive was put back into the original computer, booked back

9 into evidence, and all the work that I did was on the copy

10 that I had. During the process, the EnCase software puts a

11 write block on the suspected media so that no data can be

12 added or tampered with. At the conclusion of the

13 acquisition of the media, EnCase automatically runs what's

14 called a HASH, which is a --

15 THE COURT: How do you spell that?

16 THE WITNESS: H-A-S-H. Which is an algorithmic

17 mathematical formula that compares the two types of media to

18 say beyond any certainty that the images and the original

19 media are identical.

20 MR. ARDEN: Q. So you don't actually look at the

21 suspect hard drive. You are using a copy; is that correct?

22 A. That is correct.

23 Q. Why do you do that?

24 A. To maintain the integrity of the original evidence.

25 THE COURT: Before we go any further, can you tell

26 me what search -- is that an acronym?

27 THE WITNESS: Yes, ma'am, it is. I couldn't tell

28 you what it stands for. It's the recognized preeminent

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1 organization that provides training in computer

2 investigations, high-tech investigations on the West Coast.

3 THE COURT: Is it private?

4 THE WITNESS: It's a --

5 THE COURT: Private education or is it a government
6 education?

7 THE WITNESS: Funded by the Office of Criminal
8 Justice Planning through grants, but it's a nonprofit
9 investigation that provides training to law enforcement and
10 civilian personnel.

11 MR. ARDEN: Q. You have mentioned that you make a
12 copy of that image. What do you do next?

13 A. Depending on the case, there are several different
14 tools at my disposal or at an investigator's disposal,
15 depending what it is that we are looking for. I have the
16 ability to run search string on the data. Those search
17 strings would be for names, credit card numbers, addresses.

18 I can put in -- say, for instance, search for any
19 reference to dot com, C-O-M, which would give me any
20 reference to a Web page with a dot com extension; or file
21 existences such as dot JPG, which is a picture file; or I
22 can put in the name of an individual. I'm also able to sort
23 and look at the dates that files were accessed, created, and
24 modified to determine when the computer was last used.

25 Q. Well, getting back to -- so it has a search engine
26 to it. In other words, you can type in, for example,
27 shotgun, and would the program be able to sift through the
28 hard drive or zip drive or whatever and locate something in

1 it, in fact, on that particular media?

2 A. Yes. And that would include deleted data as well.

3 Q. So it has a capability of viewing deleted data?

4 A. Yes.

5 Q. You've mentioned that this program also looks at

6 dates. Could you describe what you mean by that?

7 A. Through EnCase I'm able to look at the dates that a

8 file was created, accessed, or modified, and through various

9 search functions I can tabulate those dates or put them in

10 order of when things occurred or when things -- a file was

11 last accessed or created through a table that appears through

12 the window on the computer.

13 Q. How do you know that's accurate?

14 A. I'm not sure if I understand your question.

15 Q. Determining when a document is generated, how do

16 you do that?

17 A. When a file is created or data is created on a

18 computer, in the Windows environment, which is what I am most

19 familiar with, it assigns or it writes data -- data that is

20 associated with that file. It will write down on the hard

21 drive the date that that file was created. That date will be

22 reflective of the date and time that that computer is set to.

23 So if I were to create a file right now on a

24 computer, it would write the date of 1/9/01 at approximately

25 11:41 hours, and subsequent viewing or examination of that

26 file, that date that it was created would remain constant.

27 In a Windows environment every time that file is looked at

28 through Windows, then EnCase and other software would show

1 that that file had been accessed on that particular date and
2 time.

3 Through EnCase software I am able to look at those
4 dates and times without changing that modified or accessed
5 date because of the write block that it puts on the data, so
6 my accessing or my viewing of it does not in any way change
7 the data that was present.

8 Q. Do you look to any type of indication when a date
9 may be altered or changed? Does that in any way interest
10 you?

11 A. Yes. In some investigations it can be very
12 determinative of if files were erased at a particular time or
13 if new files were created, depending on the circumstances of
14 an individual case. That might bear, you know, special

15 relevance to the investigation.

16 Q. Could you explain how you got involved in this

17 particular case regarding computer analysis in this case?

18 A. My investigative background began in 1992 as a child

19 abuse investigator with the City of Santa Rosa Police

20 Department, and I found that as investigations progressed and

21 technology increased we were finding more and more

22 individuals who were using computer technology and Internet

23 technology to trade and share child pornography and to make

24 contact with one another who were -- who favored the

25 molestation of children.

26 So I began taking classes to acquaint myself in

27 reading on the various technological aspects of this

28 computer crime to have myself familiar with that. When I

1 became employed by the District Attorney's office, I looked
2 to increase that training, and as I built upon that, the
3 scope of the investigations I became involved in spread out
4 to other areas other than child abuse and exploitation.

5 THE COURT: Before we go any further, you have
6 indicated that you have been able to pull things off this
7 computer and you feel confident that the dates indicated are
8 correct. Did you check the original computer to make sure
9 that it was dated appropriately?

10 THE WITNESS: As a matter of fact, I was unable to
11 do that. There is a reference in my report. Typically, the
12 process that we use is checking what is called the bios to

13 find out what the date and time is that was set for that

14 particular personal computer. Because this computer was

15 seized without its -- what we call peripherals -- the

16 keyboard, the mouse, and the manual -- I wasn't able to do

17 that because it took a different kind of keyboard. So what I

18 had to do was resort to the reference dates that were in

19 there to see if they fell in line with the time that the

20 computer was seized and that it was not accessed at a date

21 past that.

22 I found dates that were sequential up to and

23 including the date that the computer was seized, so my

24 presumption is that while the time may be off -- I have no

25 idea at this point whether the computer was set to

26 Pacific Standard Time or Daylight Time -- I had a reasonable

27 certainty that the dates are correct themselves.

28 MR. ARDEN: Q. How did you get actually in doing

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1 this particular case with regard to the suspect computer?

2 A. I was asked to examine this computer. Our office

3 did not have the equipment that was necessary to conduct a

4 proper forensic examination. And so upon receipt of that

5 equipment, I obtained a computer from the sheriff's

6 department evidence room. It was at that point that I

7 learned the computer was taken pursuant to a consent search,

8 so I obtained -- the first thing I did was to obtain a search

9 warrant for the actual search of the hard drive.

10 Q. When was that, in April of last year?

11 THE WITNESS: If I may add, Your Honor, during the

12 break I neglected to mention to Mr. Arden that I have

13 testified as an expert on two occasions in Sonoma County

14 Superior Court in the matters of People versus Baum and

15 People versus Anderson.

16 MR. ARDEN: Q. Those two cases, were they involving

17 forensic computer analysis?

18 A. People versus Anderson regarded -- was regarding

19 forensic analysis. People versus Baum was regarding the

20 duplication of media pursuant to an investigation.

21 Q. Were you qualified in those two cases as a computer

22 forensic analyst?

23 A. Yes, I was.

24 Q. Getting back -- I lost my train of thought on the

25 last question that I asked you. When you obtained a search

26 warrant in this particular case, that was, did you say,

27 April of 2000?

28 A. Yes.

22

1 Q. And at that time, when did you actually have access

2 to the program EnCase?

3 A. I received it in conjunction with the receipt of the

4 forensic computer that we'd ordered.

5 Q. And did you at that point do anything with the

6 suspect hard drive in this particular case?

7 A. Yes, I did. I removed it from the CPU and made an

8 acquisition through EnCase onto a blank, brand-new, formatted

9 hard drive.

10 Q. Where did you get the computer?

11 A. Out of the sheriff's evidence office.

12 Q. So in April of 2000 you actually, through that

13 particular program, made an exact copy of what's on the hard

14 drive?

15 A. That's correct.

16 Q. What did you do next?

17 A. I began my examination by running several searches.

18 Q. What type of searches? Let me stop you.

19 Were you familiar with the facts in this particular

20 case before you started looking into the computer?

21 A. Yes, I was.

22 Q. Specifically, did you review the reports in this

23 particular case?

24 A. I reviewed the reports, and I had had contact with

25 the witnesses associated with this case, so I had a pretty

26 good feeling for what was alleged to have transpired.

27 Q. So what searches did you do on that particular copy

28 of the hard drive?

23

1 A. I need to refer to my report for a complete list,

2 but I ran searches for the term "stun" and "shotgun"; I ran

3 searches for file extensions dealing with pictures and audio

4 visual files. I believe I ran some searches for some names

5 pursuant to things that I found while evaluating the file

6 structure.

7 Q. And you ran those searches because of information

8 you received beforehand in your investigation?

9 A. Some of the searches were done because of
10 information I received beforehand, and some were done after
11 reviewing data on the hard drive itself.

12 Q. What areas of the hard drive were you looking for?
13 In other words, were you looking at software programs? What
14 types of things in the hard drive?

15 A. When you run searches -- when an individual runs
16 searches in EnCase, it searches the entire hard drive
17 including what's in an allocated space, which is an area in
18 the hard drive that operating systems typically write data
19 to. Say when an individual is using a computer to surf the
20 Internet and images are downloaded for viewing in the
21 computer, that data exists on the hard drive, and so it's
22 written out to what's called an allocated space. So EnCase,

23 it searches all of those areas, all of the folders, and all

24 of the area where that data is to reside.

25 Q. You are looking at not only filed and stored areas

26 but also deleted or possible deleted files?

27 A. Yes. EnCase provides a graphical representation to

28 the user to show what files had been deleted and whether or

24

1 not those files have been overwritten. Deleted files stay --

2 deleted data stay on a computer unless it's overwritten by

3 other programs or other data.

4 Q. You made a search of "stun," "shotgun," what else?

5 A. If I could refer to my report for the complete list.

6 THE COURT: If you need to refresh your

7 recollection.

8 THE WITNESS: Thank you, ma'am.

9 I'm referring to page 48 of my EnCase report. I ran

10 searches for the term "shotgun, stun, stock, Leslie, police,

11 dot MPG, excursion," the name "Terry Walker," and there is

12 another search which was cut off on this page. I don't

13 recall which one it was.

14 MR. ARDEN: Q. With reference to those subjects,

15 why did you make those particular searches?

16 A. The initial searches for the reference to the

17 "shotgun" and the "stun" and "stock" were from my information

18 I had available to me pursuant to my involvement in the

19 investigation. The term "Leslie" was regarding information I

20 had on Mr. Rodriguez's ex-wife. "Police" was part of my

21 search for data that would reflect to me what the possible

22 intent was.

23 "Dot MPG" is a video file from several files that I

24 found on the computer. I thought that that might reveal

25 information to me regarding military type of actions.

26 "Excursion" I ran as a result of data I found in the e-mail

27 section of the file structure and reference to that, as well

28 as "Terry Walker."

25

1 Q. When you say you made reference to examination of

2 e-mail, what did you do with respect to that area of the

3 hard drive?

4 A. Different e-mail programs store their e-mail in

5 default locations, and since as a default, through my

6 training and experience, I know where to go to look to see
7 what e-mail is there at the time that has not been deleted or
8 has been sent or is pending to be sent out in drafts. And in
9 this case I went to the location in the file structure where
10 I found e-mail, and from perusing that I found references
11 that caused me to do the search for "excursion."

12 Q. When you say "location," with regard to -- can you
13 explain that a little bit more, please?

14 A. Every bit of data on a hard drive has a physical
15 address which can be given as a number. You can also
16 pinpoint to the location of a file by looking at what's
17 called the path statement, which would start out with the
18 drive itself, in this case C or the C drive. And then by
19 listing the files in subdirectories that would lead to the

20 location of that file.

21 And so in this case I was able to go to, if I may

22 refer, through the program files: Internet Explorer,

23 Internet mail and news, Tanya, mailbox, in-box MBX, and I

24 know that the dot MBX extension is an e-mail data file. I

25 was able to read the text that was present.

26 Q. Can you explain how you were able to read the --

27 was it -- e-mails, were they deleted files, or were they

28 actual stored files?

26

1 A. In the case of what I believe that we're looking at,

2 they were stored. They were not deleted.

3 Q. And was there a reference to a particular e-mail

4 address on that e-mail file?

5 A. Yes, there was.

6 Q. What was that?

7 A. Ideals at -- excuse me, if I can -- Ideals at WCO

8 dot com. That's I-D-E-A-L-S.

9 Q. Were there other -- any other e-mail addresses that

10 were important to you that you saw?

11 A. As I began reviewing the -- yes, there was in regard

12 to reviewing the e-mail. When an e-mail is sent and

13 received, the header information shows the address of the

14 sender and recipient.

15 Q. Was this through a program called Outlook by

16 Microsoft? Is that correct?

17 A. Yes.

18 Q. Was there any other type of e-mail program being

19 used on this computer that you saw?

20 A. There were references to Internet or what's called

21 Web based e-mail, but this appeared to be the primary e-mail

22 program used by this PC.

23 Q. And you indicated that you found something that

24 interested you regarding the e-mail. We are not talking

25 about other programs at this point. What, if anything, did

26 you see that drew your attention?

27 A. There were probably two areas that drew my

28 attention. In one area there were references in various

1 e-mails that were threatening to the intended recipient or

2 recipients of the e-mail. And in the other area there were

3 references I mentioned earlier about excursions, that in my
4 view were relevant to this case.

5 Q. Did you attempt to determine how many individuals
6 had access to this particular account? In other words, the
7 e-mail software program and account at Ideals -- WCO dot
8 com?

9 A. As part of my regular examination, it's our common
10 practice to search for references to the users of a computer.
11 We do that through looking through registry items that would
12 know who has registered the software. We'll look at the
13 profiles that are set up for e-mail accounts and the names
14 that are listed. I made those searches, and I looked for
15 data that would point to what individuals were using a
16 computer in that regard, yes.

17 Q. What did you find?

18 A. I found references to Tanya Peskova, and there were
19 actually a couple of different names associated, full names,
20 and nicknames, shortened names: Mathew Rodriguez, Mat
21 Trafton, and the spelling of Mathieu, M-A-T-H-I-E-U.

22 Q. In your investigation in this particular case, the
23 first person, Tanya Peskova, have you looked through any
24 documents -- or is that important to you in any way, that
25 individual's name?

26 A. Yes, it is.

27 Q. How so?

28 A. It's my understanding that Ms. Peskova is the former

1 spouse of the defendant in this case.

2 Q. So her name was attached to that particular Outlook

3 software e-mail program; is that correct?

4 A. The profile had been set up for Tanya, T-A-N-Y-A, as

5 well as references in the e-mails both to and from her.

6 Q. And also an individual named Mathieu; is that

7 correct?

8 A. Yes.

9 Q. You have indicated "Mathew Rodriguez." Was that

10 the full name Mathew Rodriguez?

11 A. Yes.

12 Q. And also "Mat Trafton"?

13 A. Yes.

14 Q. With regard to Mat Trafton, did you do anything

15 with that particular name?

16 A. I looked for references, and there were several

17 e-mails that had reference to the Trafton name, yes.

18 Q. What did you find in that regard?

19 A. I'm sorry, I think I need some clarification. There

20 were a lot of references. I need something a little more

21 specific.

22 Q. With reference to Mat Trafton, did you try to

23 determine or associate that with any individual or connect

24 it in any way or determine or find that that individual was

25 associated with another name in that account?

26 MR. ANDRIAN: I have to object to the question.

27 It's compound.

28 THE COURT: Sustained. And I think it's a good time

1 to take our noon break. We'll come back, as counsel have
2 suggested, at 1:30 and with our jury. I think I am just
3 going to call it at 1:30 in Department No. 2, and we can talk
4 a few minutes before I actually have the jury members start
5 upstairs. And then we want to continue this tomorrow; is
6 that what I'm hearing?

7 MR. ANDRIAN: Well, it makes sense to me.

8 Obviously, we have to conclude this before we make any
9 opening statements, but I think we can go ahead with the jury
10 selection, and maybe just figure if we don't get the jury
11 today have them come back at 1:30 tomorrow and continue with
12 this in the morning. That would be my thought.

13 MR. ARDEN: Whatever is convenient.

14 THE COURT: I think it's probably the best thing we
15 can do, considering the jury room situation downstairs. So
16 if your witness can come back tomorrow morning, and if you
17 can just come by this -- well, Department 2 about
18 10:00 o'clock. Sometimes I'm done; sometimes I am not. If
19 people can be available at 10:00 o'clock.

20 THE WITNESS: Yes, ma'am.

21 MR. ARDEN: With regard to the witness list, I know
22 counsel subpoenaed two doctors that were not referenced to
23 the witness lists, that is Dr. Cushing and Dr. O'Meara who
24 should be added to the witness list.

25 MR. ANDRIAN: They are on the witness list.

26 MR. ARDEN: On mine or yours?

27 MR. ANDRIAN: They are on the witness list. We

28 redid the witness list right before. The names that were

30

1 added were Christine Nabor, Tanya Peskova, and both

2 Dr. Cushing and Dr. O'Meara are on the list.

3 MR. ARDEN: All right. I also advised counsel that

4 I will be calling Andy Mazzanti just simply to say that he's

5 been trained in the use of stun guns, Petaluma Police

6 Department, and he's examined this particular item as a stun

7 gun in this particular case. He's actually been a victim to

8 stun incidents, so basically it would be saying what a stun

9 gun is used for and how it affects a human body. He is

10 actually with the District Attorney's office. Spelling is

11 M-A-Z-Z-A-N-T-I. Andrew Mazzanti.

12 THE COURT: Okay. We are in recess until 1:30.

13 (Whereupon, the proceedings were adjourned.)

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1 January 10, 2001 10:30 A.M.

2 - - -

3 THE COURT: We are back on the record in People

4 versus Mathew Rodriguez. SCR-28424. Mr. Rodriguez is

5 present with counsel, Mr. Andrian. Mr. Arden for the People.

6 We are in morning session, and we are continuing the

7 402 hearing with respect to the e-mails that are being

8 proposed to be admitted into this case. So I think we were

9 in the middle of the testimony of Investigator Hudson, if he

10 wants to retake the stand.

11 THE WITNESS: Yes, ma'am.

12 THE COURT: I'll remind Detective Hudson that he is
13 still under oath.

14 MR. ARDEN: Mr. Hudson has prepared actually a
15 curriculum vitae and has provided counsel with a copy of that
16 because there was an issue of that yesterday, and I'd like to
17 present a copy to the Court at this time.

18 THE COURT: Do you want to mark it as a People's
19 exhibit or a Court's exhibit?

20 MR. ARDEN: Court's exhibit.

21 THE COURT: All right. Court's Exhibit 1.

22 (Court's Exhibit No. 1 marked for
23 identification.)

24

25 DIRECT EXAMINATION RESUMED

26 MR. ARDEN: Q. Investigator Hudson, I believe when
27 we left off yesterday I was asking about user account
28 information. Do you recall that?

32

1 A. Yes, sir.

2 Q. Did you examine -- first of all, what do you mean
3 by "user," and in computer lingo is that something that you
4 use or --

5 A. Yes, it is. We would probably be a little bit more
6 specific in terms of the forensic examination on the
7 computer. We look at users and registered owner information
8 on a computer that we would be examining.

9 Q. What is a "user," quote/unquote?

10 A. Users could be anybody who has access to the
11 computer, and the registered owner is usually evidenced by
12 who registers the software that's installed on the computer
13 or the operating system.

14 Q. In this particular account, that is the Internet
15 e-mail account at WCO dot com, did you try to determine
16 users of that particular e-mail account?

17 A. Yes, I did.

18 Q. How did you do that?

19 A. From the examination of the records contained on the
20 hard drive, I found reference to two users for that account.

21 Q. And what -- did they have names?

22 A. Yes. Tanya Peskova and Mathew Rodriguez.

23 Q. And what time period are we talking about here

24 regarding that account, your examination?

25 A. The records that I focused on were primarily close

26 in time to the date of the incident of this offense which was

27 July of 1999. And I looked as far back in my recordkeeping

28 as the fall of 1998.

33

1 Q. So October 1998?

2 A. Yes.

3 Q. But you, in fact, went further, didn't you, or did

4 you determine when this particular account was -- evidence

5 of it existing on that hard drive?

6 A. Yes, I did. If I can clarify, I only made note of

7 account activity from the fall of 1998 on.

8 Q. You mentioned that you saw two users; is that

9 correct?

10 A. Yes.

11 Q. Did you ever see a user named Mathieu or

12 Mat Trafton?

13 A. Yes, I did.

14 Q. And when did you see that name appear as a user in

15 that particular account?

16 A. That began in, if I recall correctly, approximately

17 April, a little before April of 1999.

18 Q. And what did you do with that information, if

19 anything?

20 A. When I found the e-mails on the Ideals account, I

21 looked in the hard drive to find reference to Trafton in

22 order to determine whether or not I was dealing with a
23 separate user of that PC or somebody who is just changing the
24 name that had access.

25 Q. And did you find anything?

26 A. Yes, I did.

27 Q. What did you find?

28 A. I found references from Mr. Rodriguez to --

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1 MR. ANDRIAN: I am going to object to the question

2 and "references from Mr. Rodriguez." I think that's

3 basically my fundamental objection here.

4 THE COURT: Sustained.

5 MR. ANDRIAN: Thank you.

6 MR. ARDEN: Q. My question was, what did you find?

7 I'll ask you, did you find anything in relation to

8 Mat Trafton that somehow appeared associated with

9 Mathew Rodriguez?

10 A. Yes, I did.

11 Q. What did you find?

12 A. I found e-mails from an individual purporting to be

13 Mathew Rodriguez who was --

14 Q. Do you know the dates?

15 A. Yes. In April of 1999.

16 -- advising other correspondents that he was -- had

17 changed or was changing his name to Trafton and that he was

18 changing the spelling of "Mathew" to the French version of

19 M-A-T-H-I-E-U.

20 Q. So this was outgoing mail? In other words, in the

21 outbound account of that e-mail?

22 A. Yes. And in responses to mail received from this

23 other correspondent.

24 Q. Now, you are familiar with e-mail, how it does not

25 only send out text to an individual but can attach a reply

26 to it, are you not?

27 A. Yeah.

28 Q. Can you explain that a little bit more?

35

1 A. Depending on the settings for a computer, when you

2 reply to an e-mail that's received by you, it can append or

3 attach the original e-mail that was sent to you in the reply.

4 Extensively, this is so the people you sent the e-mail to who

5 receive volumes of e-mail will know what it was you refer to.

6 And typically we see e-mail correspondence that's repetitive

7 back and forth from the same two individuals who will have

8 the legacy of the prior e-mails attached to it.

9 Q. The first time that you saw a reference to

10 Mat Trafton, you indicated that that was in April of 1999;

11 is that correct?

12 A. Yeah, that's my recollection.

13 Q. Is that when you saw reference to a name change

14 from Mathew Rodriguez to Mat Trafton?

15 A. Yeah.

16 Q. Was there a middle initial attached to that

17 Mat Trafton name?

18 A. Yes. It was K.

19 Q. As far as you know, Mathew Rodriguez -- do you know
20 his middle name?

21 A. I don't know his middle name. I know his middle
22 initial is also K.

23 Q. Did you consider dates when the individual users
24 used that particular e-mail account?

25 A. I'm sorry, I need some clarification on your
26 question.

27 Q. How did you determine the dates? I think we
28 touched on that yesterday, but can you explain in a little

1 more detail how you determined a date when something is
2 generated in an account?

3 A. E-mail clients, that is the programs that send and
4 receive e-mail, append a date and time stamp to the e-mail as
5 it goes out and comes back. And additionally, in this
6 computer, all of that data is collected into one data file
7 which is also the date and time stamp.

8 Q. Anything unusual on the date stamp on the Internet
9 e-mail that you thought was a problem or error with the
10 computer operating system?

11 A. No.

12 Q. Did you find in your search of that computer any
13 references to physical addresses?

14 A. Yes, I did.

15 Q. What in particular did you find?

16 A. I found several references to where requests were

17 sent out via that e-mail account for materials to be e-mailed

18 to the Franklin Avenue address of Mr. Rodriguez.

19 Q. And have you reviewed the police reports to note

20 where the last known address of Mr. Rodriguez is?

21 A. Yes.

22 Q. Where is that?

23 A. 4400 block of Franklin Avenue in Santa Rosa.

24 THE COURT: Can I have a clarification. He said

25 that things were e-mailed to this address. Is that what you

26 meant?

27 THE WITNESS: Yes, ma'am. There was e-mail that was

28 sent out that contained a request for catalogs and data to be

1 sent to a particular address, and the address was the same as

2 the defendant's.

3 THE COURT: So the request was to respond to a hard
4 address?

5 THE WITNESS: Yes, that is correct.

6 THE COURT: Thank you.

7 MR. ARDEN: Q. When those requests were made, was
8 there a name attached to that? In other words, send this
9 information to this address, and here is my name --

10 A. Yes. Mathew Trafton or Mat Trafton.

11 Q. When was this request for these items to be sent?

12 A. If I may refer to my report.

13 Q. Yes, to refresh your recollection.

14 A. Specifically on September 9th, 1998 at 02:28 a.m.,

15 there was a request for information regarding Rotary Model

16 Magazine sent out by Mat and the response or the request for
17 the addressee. 2344 Franklin Avenue, not 4400 block.

18 Q. Anything else regarding that particular physical
19 address?

20 A. There were other references to that address. I
21 don't have any specifically in front of me that I noted.

22 Q. Do you recall whether they were '98, '99?

23 A. They were over that period of time.

24 Q. Do you know how many times there was reference to
25 that physical address?

26 A. I would only be able to guess. We're talking about
27 a billion bytes of data comprised on this hard drive. I
28 would have to estimate somewhere around six or seven

1 different e-mails that had to do with that address. There
2 were also references in the registry of the computer which is
3 where the Windows operating stores user and registered
4 owner/operator information which also referred back to that
5 same address.

6 Q. As far as you know, the computer that you
7 examined -- a copy of that computer was found at that
8 particular address?

9 A. That's my understanding, yes.

10 Q. Now, your software, that is EnCase, also examines
11 and searches for an order called JPGs. Are you familiar
12 with that term?

13 A. Yes.

14 Q. What is a JPG?

15 A. An acronym of the nickname term for a file with the
16 extension dot JPG, which is typically some type of an image
17 or photographic file.

18 Q. So it wouldn't be text based. It would be actual
19 graphics. Is that what you are saying?

20 A. That is correct.

21 Q. Did you find JPGs, that is images of individuals
22 that you felt were associated with this particular case?

23 A. Yes, I did.

24 Q. JPGs of male individuals?

25 A. Yes.

26 Q. How many different individuals?

27 A. Approximately nine.

28 Q. Did you find images of a person that's present in

39

1 the courtroom today?

2 A. Yes, I did.

3 Q. How many images did you find of him?

4 A. Those were the nine that I'm referring to.

5 Q. So they were all of one person; is that correct?

6 A. Yes.

7 Q. Appeared to be the same person?

8 A. Yes.

9 Q. Do you see that person present in the courtroom

10 today?

11 A. Yes.

12 Q. Will you please identify him for the record?

13 A. Seated next to Mr. Andrian in the blue jail

14 jumpsuit.

15 MR. ARDEN: May the record reflect identification of

16 the defendant by this witness?

17 THE COURT: It will.

18 MR. ARDEN: Q. Do you know when those JPGs were

19 entered into the computer?

20 A. Again, I need to refer back to my report. I don't

21 have the specific dates noted on this. I would be able to

22 obtain them, but if you are referring to my EnCase report,

23 they're items bookmarked 60 through 70.

24 Q. What was the purpose of looking for those type of

25 images?

26 A. Part of the reason that we look for image files is

27 to ascertain ownership and users of the computer. With
28 today's technology, it's very common for people to either

40

1 possess digital cameras and then use those files that are
2 created by a digital camera to send to friends and relatives
3 and also to scan in pictures of themselves for the same
4 purpose. So we have found that looking for image files is
5 often a means of helping to identify who owns or uses the
6 computer.

7 Q. So you have indicated you saw 5 graphic files of
8 images that appeared to be the defendant, no other male
9 images?

10 A. None that come to mind. Just as a correction, I

11 believe it was 9 or 10, not 5. Additionally to this was the
12 location of those files. You could have pictures of a male
13 subject or female subject or an inanimate object that might
14 appear on an Internet Web page, and those would also be
15 resident on the computer. The reason these were of note to
16 me is because they were in a location on the computer, and on
17 this one it was the desktop, which is not the default
18 location for a Web browser.

19 Q. When you say "desktop," what are you referring to?

20 A. The actual graphical image that one sees when they
21 sit in front of the computer, that's the desktop.

22 Q. So an image of the defendant was actually on the
23 screen that you see when the computer boots up and the
24 operating system is running?

25 A. They were in a file associated with that. It was

26 not a picture on the screen of the individual. One would

27 have had to open a folder to find those.

28 Q. Did you also -- were you aware of the defendant's

41

1 birthday in this particular case?

2 A. Yes.

3 Q. As far as you know, what is his birthday?

4 A. He was born in May. I don't recall the year. I

5 think it was May 19th.

6 Q. Did you do any search or look at any e-mail or any

7 reference to a birth date in May?

8 A. In one of the -- I didn't do a search for it, but in

9 one of the e-mails that I reviewed during the time frame

10 we've noted earlier there was communications with an
11 individual, and the writer of the e-mail indicated that it
12 would have been beneficial if that person could have come to
13 visit during May because that person would have been able to
14 help the writer celebrate his birthday.

15 Q. And did that person or writer use a name?

16 A. Yes. Mathew Trafton or Mat Trafton.

17 Q. You made reference to the photographs. Did you
18 find anything attached to the photographs? In other words,
19 where they were used in any particular way to send out
20 e-mail or to go to Web sites or contact anybody? Were you
21 aware of that?

22 A. I can't say for certain. If you're asking me were
23 they sent out as attachment to e-mail --

24 Q. Yes.

25 A. It's my recollection that they were, but as I

26 reviewed my report last night I wasn't able to find any

27 indication of that to say who it was.

28 Q. And how do you determine who has access to the

42

1 particular computer?

2 A. By performing a search of the registry information,

3 the profiles that are set up on the computer, reviewing

4 correspondence and documents that are in the computer and in

5 locations that are typical. As I said earlier, the

6 registration for software applications that are installed

7 typically call for the user to input names and addresses and

8 things like that. So we'll look in those particular

9 locations to see who is referenced as users.

10 Q. And were you able to determine who you felt had

11 access to this particular computer beginning in October '98

12 through early part of July 1999?

13 A. Yes. Mathew Rodriguez and Tanya Peskova.

14 Q. Anybody else?

15 A. I found no evidence of anybody else.

16 Q. But there was reference to Mat Trafton?

17 A. Yes.

18 Q. Now, there are particular e-mails you find

19 regarding reference to, quote, "excursions" through your

20 search?

21 A. Yes.

22 Q. When did you first find mention of the subject

23 excursions?

24 A. In April of 1999.

25 Q. Do you recall -- do you know the term "header" and

26 "footer" and so forth?

27 A. Yes. Those are data information at the beginning of

28 the document or an e-mail.

43

1 Q. With reference to that subject, "excursion," was

2 that a -- the first time it was mentioned, was that an

3 outbound -- an out file of that particular e-mail account or

4 what did you find?

5 A. May I refer to the e-mail?

6 Q. If it will refresh your recollection.

7 A. This was a message dated the 28th of April 1999,
8 0759 in the morning, from the computer in question addressed
9 to KRMarie, so it would have been an outbound e-mail.

10 Q. Was there a name attached to that?

11 A. Yes. It's signed Mathieu, M-A-T-H-I-E-U.

12 Q. How many times did you find the subject in e-mail

13 that was discussion about excursions?

14 A. I believe it was four or five.

15 Q. Over what time period?

16 A. From April of 1999 through July 3rd, '99.

17 Q. Was that of any interest to you in looking at -- in

18 looking at the computer?

19 A. Yes, it was.

20 Q. Why?

21 A. In the initial reference dated 2nd of April, the
22 writer referred to playing Robin Hood and that there were --
23 and I'm quoting from the e-mail -- "many lazy rich women that
24 need to be relieved of their collection of shiny pebbles."
25 And given my understanding and circumstances of this alleged
26 offense, that seemed germane to me.

27 Q. What about the other e-mails that you also
28 indicated regarding excursions?

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1 A. From April on up through July there was various
2 discussion referring to the excursions and going out and
3 whether there was danger involved and steps that the writer
4 was taking to avoid danger. And then specifically leading up

5 to the end of June, the beginning of July, there was more

6 reference to that the individual, the writer, was packed and

7 ready to go out to the area, what they referred to as the

8 area of operations, and that they would be careful. Items of

9 that nature.

10 Q. You also looked at other e-mails; is that correct?

11 A. Yes.

12 Q. Was there mention of location in that other e-mail

13 during this time period? In other words, Sonoma County,

14 Santa Rosa?

15 MR. ANDRIAN: Your Honor, I think I am going to

16 object to this line of questions. The e-mails speak for

17 themselves, and I think for this witness to try to

18 characterize what these e-mails -- I think is not

19 appropriate. They are hearsay. If they are admitted, they

20 are admitted, and they speak for themselves.

21 The focus, I believe, and the reason I'm objecting,

22 the focus, the Court is going to have to decide, first of

23 all, I think, whether they have met the threshold of

24 authentication, and I am also going to be raising Kelley-Frye

25 on this. Once having done that, I don't think it's up to

26 this witness to decide what he thinks is the relevant

27 portion.

28 I think what we're now doing is we're moving away

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1 from what I believe the focus of this is, and I think the

2 Court is going to have to look at the e-mails, listen to an

3 offer of proof from the prosecutor as to why he thinks

4 they're relevant. With all due respect to Mr. Hudson, who
5 has opinions, I am not sure his opinions are relevant.
6 Unless these questions are just being offered for why he --
7 why he pulled these out, and -- you know, because if and when
8 the trial comes, I want it to be understood that I would be
9 objecting and I am objecting to his opinions about why he
10 thinks something is important.

11 So I guess my point is I think it's beyond the scope
12 of the purpose of this hearing at this point.

13 THE COURT: Mr. Arden.

14 MR. ARDEN: Thank you. Those -- any reference to
15 location is important in his examination if there's reference
16 to a physical location or a particular area of the state, and
17 his forensic analysis of that becomes relevant in figuring

18 out who the user is, and that's what I'm asking him here, to
19 define that. I'm not asking him opinions on this. I'm
20 asking him did he find reference to locations in this area.

21 THE COURT: In that we're still focusing on the
22 user, the question would seem to be appropriate, so I'll
23 overrule the objection.

24 THE WITNESS: If I understand Your Honor correctly,
25 in terms of did I find references to particular locations as
26 related to who owned or used the computer, is that the
27 question?

28 MR. ARDEN: Q. Maybe my question -- the way I

1 phrased it was awkward.

2 You looked at other e-mail in conjunction or in

3 connection with this?

4 A. Yes, I did.

5 Q. Was there reference with outbound e-mail or

6 incoming e-mail with Sonoma County, areas of Sonoma County?

7 A. Yes.

8 Q. Was that during the time period of '98 through '99?

9 A. Yes.

10 Q. Do you recall what the locations were?

11 A. The writers of various e-mail either included the

12 address that I spoke of earlier as far as Santa Rosa, or

13 there were personal ads that were drafted that referred to

14 the writer living in Northern California and 40 or 50 miles

15 north of San Francisco.

16 Q. In fact, there was a correspondence from Mat to a

17 woman named Terry Walker; is that correct?

18 A. Yes.

19 Q. Was there reference to a particular area of

20 California in those e-mails?

21 A. Yes. There were references to the west county part

22 of Sonoma County and Santa Rosa as well.

23 Q. And what time period were those e-mails generated?

24 A. Spring of 1999.

25 Q. During your investigation also were you aware of

26 particular interests in physical items that the defendant

27 had at his location?

28 A. Yes.

1 Q. Or interest to helicopters and shotguns?

2 A. Yes.

3 Q. Was there any reference in the e-mails or for that

4 matter the hard drive that you examined on those particular

5 subjects?

6 A. Yes, there was.

7 Q. What did you find?

8 A. Through both my personal investigation and

9 interviews that I did, as well as my review of the forensic

10 examination of the computer, I found that Mr. Rodriguez is

11 interested in helicopters, that he has, in fact, flown

12 helicopters and was a student pilot at one point.

13 In the computer I found numerous references to

14 computers or -- excuse me, helicopters, helicopter-related

15 magazines, requests for information about purchasing
16 helicopter kits for home building, references in e-mails
17 that the individual writer was a helicopter pilot, had been
18 a helicopter pilot, and specifically a members Web page
19 posted by the user of the computer dealing with a
20 helicopter-oriented calendar sales.

21 Q. What time period are we talking about?

22 A. During the fall to spring of '98 to '99.

23 If I may continue, there was also references to the
24 shotgun. This was in the form of requests to varying
25 agencies and companies for different types of shotguns,
26 different types of stocks for a shotgun, and whether or not
27 the people that the writer was sending to was able to do
28 modifications upon a shotgun.

1 Q. In your examination, in the findings that you made,
2 how do you know that they are accurate?

3 A. I know that the data either exists or does not exist
4 on the computer. When I make my copy, as I mentioned earlier
5 in my testimony, there is a mathematical equation that I run
6 to ensure that the image I am working from is the exact
7 duplicate of the original media. And so the media that I was
8 looking at, that information, that data, the ones and zeros
9 is broken down to the most simple form and either exist or
10 they do not. If somebody had tampered from it, with that,
11 then I would expect to see apparent dates or times or
12 evidence that was left that things had been changed that

13 normally wouldn't have been changed on there.

14 Q. Any indication that things were altered or changed

15 or there was a problem with that system or hard drive?

16 A. No.

17 Q. Are you also aware of the fact that the defendant

18 was -- had a previous marriage to a woman by the first name

19 Tanya or Tatianna?

20 A. That's correct.

21 Q. Did that in any way play in your -- was that

22 relevant in any way with how you looked at these e-mails?

23 A. Yes, it was. Because it helped me focus in on who

24 the users and owner or owners were of this computer.

25 Q. Can you explain that a little bit further?

26 A. I found references back through early '98 where it

27 appeared that Tanya or Tatianna was using the computer, was

28 sending out e-mails, soliciting jobs, or corresponding with

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1 individuals.

2 And then in the fall of 1998, the e-mail

3 correspondence that dealt with Tanya was to another

4 location, in that the writer/user of this particular

5 computer was writing to Tanya at another e-mail address and

6 references Tanya coming over to the residence as opposed to

7 being present. And what that told me is that she was no

8 longer present in the residence or that the person who

9 purported to be Tanya was no longer present in the

10 residence.

11 And from my investigation I note that Mr. Rodriguez

12 and his wife had split up at some point. And then from that

13 point on, I found one other reference, one other e-mail that

14 was purported to have been sent out by Tanya which was in, I

15 believe, February of 1999, and that was the only other

16 incident I found where it appeared that she had been

17 actually using that computer.

18 Q. Were there any e-mails with reference to Tanya in

19 them regarding excursions?

20 A. No.

21 Q. Were there any e-mails regarding excursions with

22 any other name than Mat, Mathew Rodriguez, or Mat Trafton?

23 A. Only to the addressee of the e-mail but not signed

24 by anybody. Other than that, no.

25 Q. Do you know who the addressee or recipient of that

26 e-mail was regarding the excursions?

27 A. Yes.

28 Q. What was that?

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1 A. Subject by the name of Marie Wallensten.

2 THE DEFENDANT: Wallensten.

3 THE COURT: Can we get a spelling of that for the

4 court reporter?

5 THE WITNESS: M-A-R-I-E, W-A-L-L-E-N-S-T-E-N.

6 MR. ARDEN: Q. With your education and training,

7 you didn't -- using EnCase, have there been any indications

8 that that is, that you are aware of, an unreliable way of

9 examining a computer?

10 A. No. EnCase is a tool. It's not the only tool that

11 we use. It's generally accepted as the industry standard, if

12 you will, because of its reliability and because of its

13 functionality. I am not aware of any errors where it's read

14 things that weren't there, that weren't present, no.

15 Q. You mentioned you are a member of the North Bay

16 Task Force. Is that the primary tool that's used in

17 examining computers?

18 A. Yes.

19 Q. Is that the state of the art at this stage for

20 examining computers using that particular software?

21 A. Yes.

22 Q. Are you aware of anybody in the -- in that field

23 that says that this is not an unreliable source based on

24 your reading of the articles on computer forensic analysis?

25 A. No.

26 Q. Based on your examination of those e-mails

27 regarding excursions, do you have an opinion regarding who

28 the author is of that -- this particular e-mail?

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1 A. Yes, I do.

2 Q. What is that opinion?

3 A. That they were written by Mathew Rodriguez.

4 Q. What is the basis for your opinion?

5 A. During the totality of my exam, I found that there

6 were two users of this computer: Tanya and Mathew Rodriguez.

7 I know that this computer was located in a residence that to

8 my information during the time in question was inhabited only

9 by Mr. Rodriguez. While the e-mails are -- also reference

10 Mathew Trafton, I found e-mails that Mr. Rodriguez sent

11 telling people that he was changing his name and changing the

12 spelling of his name.

13 I found information on this computer pursuant to my

14 investigations that identifies numerous similarities between

15 Mr. Rodriguez and Mr. Trafton, the middle initial, a

16 reference to a head injury by both individuals --

17 Q. Can I stop you there? Why is that important?

18 A. I know that Mr. Rodriguez suffered a head injury.

19 So I found e-mail that was written under the pseudonym of

20 Mathieu or Mat Trafton. I found that to be similar to

21 information that I had regarding Mr. Rodriguez.

22 Q. What else?

23 A. Both subjects, Trafton and Rodriguez, have an
24 affinity for helicopters. The Trafton subject was writing
25 about shotguns. I know from my interviews that Mr. Rodriguez
26 possessed a shotgun. The sequence of e-mails and the
27 consistency of the dates and times and what was being
28 written, in conjunction, was a total lack of indication that

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1 anybody else was using that computer or had signed on to
2 other Web sites or had done things different than the pattern
3 that I was seeing. It did not indicate that anybody else was
4 using this computer from that period of time of fall of '98
5 through the beginning of July of 1999, other than
6 Mr. Rodriguez.

7 There's a -- in addition, there is a sequence of

8 events that typically has to happen when one logs on to an

9 Internet service provider where you have to input passwords,

10 and log on names, which would require -- if somebody else

11 were to be using this other than Mr. Rodriguez, it would

12 require for them to know that.

13 So from my investigation in totality, I found

14 nothing to suggest that anybody else had used it. And all

15 of the similarities and all of the data that was present,

16 the physical data pointed to just one user -- with the

17 exception of one e-mail that Ms. Peskova sent in February --

18 as Mr. Rodriguez being the sole user of this computer at

19 that time. Nobody else would have had knowledge of the

20 things that were in there other than Mr. Rodriguez, from my

21 investigation.

22 MR. ARDEN: Thank you. That's all I have at this

23 point.

24 THE COURT: All right. Mr. Andrian.

25 MR. ANDRIAN: Thank you, Your Honor.

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1 CROSS-EXAMINATION BY Mr. Andrian

2 MR. ANDRIAN: Q. Mr. Hudson, first of all, explain,

3 if you would, to me a couple of things. You made mention of

4 the fact that EnCase was being used. Exactly what is EnCase,

5 sir?

6 A. EnCase is a software suite that combines several
7 forensic tools, search tools, most specifically file and data
8 undeleting tools, and presents them in a graphical interface
9 so that one can install the program onto a computer and then
10 to some degree automate the process. So that as one examines
11 the computer you would expect to get the same result if I ran
12 EnCase and did a search for X, Y, Z on a hard drive and then
13 gave another individual EnCase and the same hard drive. They
14 would come up with the same result.

15 Q. Where the human element comes in, I gather from
16 your testimony, is in determining, for instance, what sort
17 of words you use as your kind of buzz words to find e-mails;
18 am I right?

19 A. Yes.

20 Q. For instance, hypothetically, if you had four or
21 five e-mails in which "excursion" was a word that was used,
22 you pulled those e-mails out based on that word, correct?

23 A. That's correct.

24 Q. Now, in doing so, then you get the e-mails going
25 and to -- and back to that same person, all the
26 conversations they would have had during that period, or
27 only those in which "excursion" is used?

28 A. If I had performed a search just on "excursions,"

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1 then the result on the screen that would be displayed to me
2 gives a representation of all of the matches for that search.
3 In this case, all of the e-mail that's in an in-box in this

4 particular computer is included in a file with the appendage

5 that's in-box dot MBX, so all the e-mail, whether it had

6 "excursion" in it or not, I would be able to view if I went

7 and opened that file.

8 Q. I guess that's where I am going. In other words,

9 the EnCase is a piece of software, but you are the operator

10 of that software?

11 A. Yes.

12 Q. And if, for instance, as you said I think just a

13 moment ago that there were -- I think you said four or

14 perhaps five e-mails regarding "excursion" that were

15 apparently sent to somebody named Marie Wallensten; am I

16 right about that?

17 A. Yes, sir.

18 Q. When EnCase extrapolates that, based on your using
19 the word "excursion," do you then extrapolate all the e-mail
20 conversations that the person described as Mat has had with
21 Marie during that same period?

22 A. I'm not sure if I understand your question. If I
23 can maybe explain how the process works.

24 Q. Okay.

25 A. It would give me a list of everywhere that word
26 "excursion," or whatever the phrase is, appears on one side
27 of the screen, and then on the other side of the screen that
28 word is highlighted wherever it occurs, whether e-mail or

1 another occasion.

2 Q. I understand. Hypothetically, let's say that the

3 person named Mat has sent 100 e-mails to Marie in that

4 four-month period, okay?

5 A. Yes.

6 Q. And she has replied 100 times.

7 A. Yes.

8 Q. And you used the word "excursion" as your search

9 tool. With me?

10 A. Yes, sir.

11 Q. Does that mean then that you then pull up all the

12 e-mails that Marie and the person named Mat would have

13 shared in that four-month period or only those that use the

14 word "excursion"?

15 A. In that view, no, it would only have those ones that

16 had the word "excursion" in it.

17 Q. So if people were having ongoing conversation over
18 a period of time on e-mail, you would only have that part
19 that used those words, "excursion," correct?

20 A. Not exactly. I would -- in that view, because you
21 are changing between different views within EnCase, in that
22 search and find view, that would be all displayed to me. As
23 a matter of process, once I find that -- where I'm seeing
24 just a small bit of data, I then go to the file, in this case
25 the file I mentioned earlier where it's the dot MBX
26 extension, which gives me all of the e-mails so I can view
27 that data in its context. In which case that would give me
28 in that view all of the e-mails.

1 Q. So then you can tell me then how many times a
2 person named Mat e-mailed the person Marie in the period
3 from October until July of -- October of '98 until July of
4 1999?

5 A. I would be able to get that data.

6 Q. Is that included in your EnCase report?

7 A. No.

8 Q. You made mention at the -- almost the conclusion of
9 your testimony regarding EnCase use in your field. Tell me
10 a little bit about when EnCase first became known to you.

11 A. I first learned about EnCase when I was attending
12 classes at Search about two-and-a-half years ago. It's part
13 of the training. Once you go through some of the more manual
14 features of how to do a computer examination in that

15 particular environment, then they expose you to that, show
16 you the more automated means of obtaining the data. Our
17 office first purchased EnCase in April of last year. I had
18 worked with it prior to that, but I have been aware of it for
19 approximately three years.

20 Q. And you -- I believe you made a statement at the
21 conclusion of your testimony this morning that it was your
22 belief that EnCase -- let me use my word, but I think it's
23 essentially what you said -- had gained general acceptance
24 in your field as a good work tool, correct?

25 A. Yes, sir.

26 Q. What do you base that on?

27 A. As part of my involvement in the Task Force, my
28 membership in HTCIA, and in a broader sense CFID and

1 memberships which are ongoing discussions between forensic
2 investigators of different tools and different methodology, I
3 found that worldwide EnCase software is the preferred suite
4 of software used by people who do forensic computer
5 investigations.

6 Q. Could you be a little more specific in what you
7 mean by talking to people or worldwide suite? Can you give
8 me some details upon which you base that?

9 A. Yes. One of the list serves that I belong to, HTTC,
10 I receive anywhere from 20 to 30 e-mails a day where
11 individuals like myself may be posting questions regarding
12 methodology or tools to be used, or contacts. It covers a
13 wide range. The membership in this list serv covers

14 approximately 900 people throughout the entire globe, and the
15 preeminent mention of a software suite to do -- or software
16 tools to do a forensic examination is primarily EnCase, and
17 the primary -- the largest number of postings regarding
18 computer forensics and methodology surround EnCase and ways
19 to use EnCase to obtain results from a computer.

20 Q. What familiarity do you have, if any, with EnCase
21 used in court proceedings?

22 A. I know that it has been -- well, maybe I should ask
23 for some clarification in terms of what you mean "used in
24 court proceedings"?

25 Q. Can you cite an example where you know where EnCase
26 has been used by an expert witness in a court proceeding?

27 A. I do not have the case cite, but I know that it has

28 been used. And in my briefcase I may actually have the case.

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1 I'd have to check. The software company, Guidance Software,

2 that manufactures it puts out a journal or a legal update

3 periodically that discusses those issues, where it's been

4 used in court, if there's been problems with it, or areas

5 that need to be clarified.

6 Q. And have you -- in terms of that particular

7 information, what problems, if any, have you noted in

8 reading that?

9 A. The primary issue that people run into that use

10 EnCase is how to use some of its functions. To my knowledge,

11 it's never been shown to be unreliable. The problems that

12 people have are, "How do I go about extrapolating this data

13 out of this type of surrounding?" There are various -- we've

14 touched on actually a very limited number of the uses for

15 EnCase, for the functions of EnCase.

16 There are various -- what we call E strips, which

17 are a programing language that can be run that will go in

18 and seek out even more specific data such as credit card

19 numbers, and those credit card numbers can be in a multitude

20 of formats, so it's actually programming language within

21 EnCase that can do that. And so you might see a posting or

22 a notice on the Web site for the company regarding somebody

23 who is having difficulty, you know, getting that function to

24 work in terms of programming it correctly, but I am not

25 aware of any errors, if that's your question.

26 Q. Does EnCase purport to be able to, if you will,

27 identify who the sender of an e-mail is?

28 A. I don't think that any software application could do

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1 that. It's up to the review of the forensic examiner to look

2 at all of the data and make that determination.

3 Q. I am a neophyte with computers, and you know a lot

4 more than I know. But I know that if I get Ms. Cruz -- the

5 clerk's password, I could use her e-mail, couldn't I?

6 A. Yes.

7 Q. And so when you say you know that, for instance,

8 Mr. Rodriguez was the only person in this house, you don't

9 know that, do you?

10 A. I don't know that beyond 100 percent. I know that

11 on this computer I found no reference that would make me
12 suspicious anybody else was using the computer, and I deal
13 with cases -- I'm dealing with one right now where there's
14 multiple users on the computer and that leaves very
15 distinctive types of trails, if you will. You know, can I
16 say that nobody was in Mr. Rodriguez's house between that
17 time? No. I wasn't present, so I can't.

18 Q. And you can't say that no one didn't use his
19 computer besides him and Ms. Peskova, can you?

20 A. I can say that there is no competent information
21 that I have that anybody else used it. I found a lack of
22 data pointing that direction.

23 Q. And in terms of -- one of the things I wanted to
24 ask you -- maybe we can just use an example here. Do you

25 have your report in front of you?

26 A. Yes, sir.

27 Q. Turn to page 16, if you would, of your report, your

28 EnCase report.

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1 Your Honor, that might be one of the first pages

2 that you have.

3 And I noticed that the -- there is this bold type

4 print that has 90, 90, 91?

5 A. Yes, sir.

6 Q. What's that?

7 A. That's what's referred to as a bookmark. When an

8 examiner finds data that they want to bookmark or make note

9 of for later review or for printing out, the EnCase report

10 bold faces that type.

11 Q. It says -- for instance, using 90 as one of the

12 ones, it says, "CPU slash C slash program file slash

13 Internet Explorer slash Internet mail and news slash Tanya

14 slash mail slash in-box dot MBX," in quotes. And then

15 "e-mail from Tanya, nonthreatening suggestion, getting

16 along, compliments Mat." What's that?

17 A. Those were my comments that are appended to the

18 first part of that. The part in quotation is the path

19 statement. It's the physical location on the hard drive

20 where this data exists. And at the conclusion of those

21 quotations, the next portion that begins with "e-mail" and

22 ends with "Mat" are my comments or the comments of a forensic

23 examiner as notation to self -- that's my interpretation.

24 Q. That's your interpretation of what's occurred?

25 A. Yes, sir.

26 Q. That isn't based on something you input to the

27 computer. This is just your interpretation of what came

28 out?

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1 A. Yes.

2 Q. Now, in the English language, you know,

3 "excursion," for instance, that's a word. Can you think of

4 other words that you would use besides "excursion" that

5 might mean the same thing?

6 A. Journey or trip.

7 Q. And did you examine all of the e-mails between the

8 person purporting to be Mat and Tanya and read them all?

9 A. Yes.

10 Q. Every single one?

11 A. Yes.

12 Q. Was there any discussion in any of those e-mails of

13 anything where a trip or a journey, where the word

14 "excursion" wasn't used but a -- the "journey" or "trip" or

15 "outing" or something like that was used that you haven't

16 pulled up in your EnCase report?

17 A. Yes, there was.

18 Q. And why didn't you pull those up?

19 A. The context in which it was used in other locations

20 didn't suggest the same things to me as this did.

21 Q. So that was based on your interpretation of those

22 particular other e-mails as opposed to just pulling them all
23 out so that we would have the benefit of the entire series
24 of conversations between these two people; is that right?

25 A. In a sense, yes.

26 MR. ANDRIAN: Do you want to break or --

27 THE COURT: Oh, yes, I guess we do. I was

28 interested in --

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1 All right. We'll break for lunch. We are going to
2 still be picking our jury this afternoon. Do we want to
3 continue? I am not here tomorrow morning. I am not going to
4 be here tomorrow morning.

5 MR. ARDEN: Oh, you are not.

6 THE COURT: How do we want to continue with this

7 witness?

8 MR. ARDEN: He's -- I can't speak for his schedule

9 now.

10 MR. ANDRIAN: Whenever we have time.

11 THE WITNESS: I am not here on Friday, but I am

12 available whatever other time the Court needs me to be here,

13 Your Honor.

14 THE COURT: Well, can I get an estimate as to how

15 much more time we think we need?

16 MR. ANDRIAN: I probably need another 15 or 20

17 minutes, maybe not even that, in cross, and then we have the

18 other stuff, the handwritten stuff, so I'd say I probably

19 need another hour and a half to complete this, maybe an hour.

20 THE COURT: Well, is it possible that we see how far
21 along we get with the jury selection and make a decision as
22 to when to bring this witness back?

23 MR. ANDRIAN: Yes, Your Honor.

24 THE COURT: Okay. So we don't need Mr. Hudson at
25 1:30, but we'll just get you back here when we can and with
26 your availability, and we'll see how far we get with the jury
27 selection. But as I understand it, we want to complete this
28 and have decisions made in all of this before opening.

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1 MR. ANDRIAN: Unless counsel agrees not to refer to
2 it in his opening.

3 MR. ARDEN: That's a possibility. I mean -- I want
4 to get this thing going.

5 MR. ANDRIAN: That's always a possibility.

6 THE COURT: Okay. We can talk about that some more,
7 too, then. Okay. We'll recess for lunch.

8 Mr. Rodriguez needs to be dressed out.

9 MR. ANDRIAN: He was not scheduled -- for whatever
10 reason, they didn't have him scheduled for court, and so you
11 are going to have to I think -- or somebody is going to have
12 to notify the jail that he has to have the opportunity to
13 shave and all that stuff because not being on the court list
14 he won't get to do that. At least he informed me of this.

15 THE COURT: Actually, it was completely scheduled.
16 We had minute order and everything, so...

17 MR. ANDRIAN: They told him he wasn't going to court
18 today.

19 THE DEFENDANT: I had them check on the screen and
20 it was blank. They had me convinced that I wasn't coming to
21 court.

22 THE COURT: Okay. All I can tell you is that the
23 goof-up was not from this end. We'll try to figure out what
24 happened.

25 MR. ANDRIAN: I just want to make sure he has the
26 opportunity to cleanse himself before he comes back to court.

27 THE COURT: Does he need some personal time over
28 lunch?

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1 MR. ANDRIAN: Right. That's what I mean.

2 THE COURT: They need to be advised that he needs

3 shower time and prep time before he comes back at 1:30.

4 (Whereupon, the proceedings were adjourned.)

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1 January 11, 2001

2 THE COURT: Back on the record. Mr. Rodriguez is
3 here with counsel, Mr. Andrian. Mr. Arden for the people.
4 We are in the middle of a 402 hearing, and
5 Investigator Hudson is on the stand still.

6 THE WITNESS: Yes, ma'am.

7

8 CROSS-EXAMINATION RESUMED

9 MR. ANDRIAN: Q. Good afternoon, sir.

10 A. Good afternoon, sir.

11 Q. I wanted to ask you a few more questions about

12 EnCase. Are you aware of anyplace where EnCase has been

13 used in a court of law?

14 A. Yes, I am.

15 Q. Where?

16 A. It's been used in California criminal courts. It's
17 been -- and accepted. It's been used in federal courts and
18 accepted, and I am aware of a case in Washington State where
19 it's been used and accepted in the Washington case. And
20 the -- excuse me, the San Francisco criminal case and the
21 federal civil case it was, in fact, cited by the defense who
22 found fault with the examiner as not relying upon it as an
23 industry standard.

24 Q. And for what purpose -- strike that.

25 You said in California. Are you familiar with any
26 particular case that it's been used?

27 A. Yes. I'm sorry, I don't recall the specific cite.

28 There is a criminal case involving child pornography in the

1 San Francisco Superior Court where a forensic examination was
2 conducted and that evidence was used and admitted in that
3 case.

4 Q. Were those photographs?

5 A. To my knowledge, yes.

6 Q. So EnCase lifted the photographs off, and those
7 photographs were shown in court as replicas coming from the
8 hard drive?

9 A. Yes.

10 Q. And any facts on any other sort of a case that you
11 are aware of where EnCase was used?

12 A. In the federal civil case which was Mathew Dickie
13 versus Seeras Corporation, and I don't have the numbers

14 written down. I just made the notation. The issue was

15 twofold, if I recall correctly. One was whether or not

16 EnCase was the standard, and I believe that one had to do

17 with some record of some type. I didn't read the entire

18 case. And in Washington was another criminal case where

19 EnCase was used, and I am not familiar with the facts of that

20 case as far as what evidence --

21 Q. Are you aware of a criminal case in California

22 where EnCase has been used for the purpose of establishing

23 the authentication of the writer of an e-mail?

24 A. No, I'm not.

25 Q. And just to clarify some of your earlier testimony,

26 you said that what EnCase does is that it allows the -- it

27 takes the image from the hard drive, leaves the hard drive

28 intact, correct?

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1 A. Yes, sir.

2 Q. So the -- if you will, the EnCase is not the actual

3 original document, is it?

4 A. No.

5 Q. For want of a better term, is it a secondary --

6 it's a reproduction, secondary image of purportedly the same

7 thing?

8 A. That would not be entirely accurate.

9 Q. Tell me where I'm not accurate.

10 A. What EnCase does is automates the function of going

11 out and acquiring a bit for bit, byte for byte duplicate

12 image, and then compares that with a HASH value that we spoke

13 about earlier to determine if there is an extra space or a
14 comma or two bits of data were transposed, you would not get
15 the HASH value. The chances of two data files having
16 identical HASH value are 10 to -- I think it's 10 to the
17 28th power.

18 And so I am familiar from my training and
19 experience that courts have accepted it not as a duplicator,
20 a copy like one would normally consider like a Xerox. It is
21 taken as being almost original evidence. In some cases we
22 are not able to go out to, say, a business and close down
23 the business to take their computers and do an exam, and so
24 the courts have held that by taking an EnCase image that is
25 a best evidence type of image.

26 Q. What court case has held that?

27 A. I'd have to look it up, but I am familiar from my
28 readings that that has been held in federal court.

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1 Q. And let me ask you this, sir. The data that you
2 have lifted -- this is kind of a follow-up to something I
3 asked you yesterday. The data that you have lifted -- and
4 when I use the word "lifted," I mean the EnCase that you
5 have taken from the original. The way that you did it was
6 by you selecting words that you described such as "stun,
7 shotgun, excursion," and you put some names in, things like
8 that, correct?

9 A. I am not sure if I understood what you are saying.
10 I didn't do a search for those issues or those names off of

11 the original media. That search is completed after an exact

12 duplicate of the original hard drive has been made. And I am

13 then working on a duplicate of the hard drive, and I searched

14 that duplicate hard drive, so I didn't pull off specific bits

15 and pieces off the original and only looked at those. I

16 looked at the entire media that was on the hard drive.

17 Q. Is it your testimony then that initially the EnCase

18 removed every e-mail that was sent on this computer from

19 April of -- October of 1998 through July -- April or July of

20 1999?

21 A. Yes. It takes every bit of data, e-mails data,

22 folders, even deleted in what's called unallocated space. It

23 is an exact duplicate of the original hard drive.

24 Q. Is it your testimony that the report that you

25 prepared that you have in front of you -- that it contains

26 the text of every e-mail that was written from that computer

27 during -- from October of 1998 through April of 1999?

28 A. No. My report does not.

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1 Q. All right. So the material that you have provided

2 to me through your report does not contain all of the

3 e-mails that were sent on that computer during that period;

4 is that correct?

5 A. No. Yes, you are correct. It does not.

6 Q. In fact, it doesn't contain all of the -- all of

7 the correspondences that would have gone on between, for

8 instance, the person identified as Mat Rodriguez and

9 Marie Wallensten, correct?

10 A. Correct. The report does not. The image does.

11 Q. And the report of the EnCase entries that you have

12 included in your report does not contain all of the entries

13 that existed between the person named Mat and the person

14 named Tanya; is that correct?

15 A. That is correct, yes.

16 Q. So would it be fair to say then that by the tools

17 that you use, you in effect selected those which would be

18 made part of your report as far as providing us with the

19 text?

20 A. Yes, sir, that's correct. If I were to print out

21 everything -- this was a hard drive that was 1.2 gigabytes

22 which would take two laser printers running seven days a

23 week, 24 hours a day, approximately two weeks to print out

24 every single bit of data. So it's prohibitive for me to try

25 to reproduce that in a paper format, so it is reliant upon

26 the examiner to glean what's relevant to the case.

27 It wouldn't be -- there would be no use in my, say,

28 assuming looking into operating system files for the Windows

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1 operating system if they were -- they would be germane to

2 this issue.

3 Q. But in terms -- I think I started to ask you this

4 yesterday right when we concluded. In terms of, for

5 instance, the correspondence between the person identified

6 as Mat and Marie, for instance, do you know how many

7 different e-mails there were between those two people during

8 the period in question?

9 A. No, I do not.

10 Q. And what determined which ones you chose to include

11 in your report?

12 A. I originally started -- the way I came upon the

13 e-mails to Marie was that I started at the most recent

14 e-mails which were the date that the computer was last used

15 and started looking back and reading the content and then

16 finding things that I thought were germane to the case and

17 then running a search on terms in there that I thought would

18 help me find other relevant data in there.

19 So while I know that I have scrolled through, as I

20 testified earlier, all of the e-mails that were there, I did

21 not specifically point out or bookmark, as I testified

22 earlier, each and every one, because they contained, you

23 know, things that were not relevant to this case.

24 Q. Now, when you say "they contained things that were

25 not relevant to this case," what did you base your opinion

26 on that it wasn't relevant?

27 A. If an e-mail, for instance, or by example, contained

28 discussion of Mr. Rodriguez' trip over to visit this

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1 individual, I didn't see how that had any relevance to this

2 case. And there are some federal statutes, privacy statutes,

3 that somewhat limit not only the examinations we do but also

4 what we disclose or print out. And as an examiner I am going

5 to see things that might be of a personal nature and are not

6 relevant to this, and it's incumbent upon me ethically not to

7 include those when they are not relevant.

8 So if you talk about -- if an e-mail talked about a

9 trip that one of them might be taking or a package of

10 clothes that Mr. Rodriguez might have sent to the individual

11 that had nothing to do with the Kalleen household or nothing

12 to do with the event on July 4th, I didn't feel that e-mail

13 was relevant to include in the report.

14 Q. Let me ask you this, speaking of that, since you

15 seem to have been making some sort of a qualitative judgment

16 as this was going on, did you find a single reference to

17 anything about the Kalleen household?

18 A. No, I did not.

19 Q. And you said you were scrolling. Just for the

20 record, what's "scrolling"?

21 A. In this case the e-mail is presented to me on the
22 screen of the computer, and using the mouse on the right-hand
23 side clicked the down arrow, and the text scrolls in front of
24 me as I'm able to read through and scan it.

25 Q. Now, is it your testimony that you read all of the
26 e-mails between the person identified as Mat and the person
27 named Marie?

28 A. Yes.

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1 Q. From beginning to end, word for word?

2 A. No, I can't say that. I would scan through and see
3 what the content was and then continue.

4 Q. What about those involving persons identified as

5 Mat and Tanya?

6 A. I did read those.

7 Q. Every one of them?

8 A. Yes.

9 Q. Word for word?

10 A. Yes.

11 Q. And then you selected those which you felt were

12 relevant?

13 A. Yes.

14 Q. Did you make any attempt to contact either the

15 person identified as Marie or the person identified as Tanya

16 as to whether either of them have received such e-mail and

17 then responded to it?

18 A. Yes, I did.

19 Q. And to whom?

20 A. To both parties.

21 Q. And how did you do that?

22 A. I sent an e-mail to Marie, received no response. I

23 sent, as a matter of fact, a subsequent e-mail a couple of

24 days ago, again receiving no response.

25 Q. When did you send the e-mail to Marie?

26 A. Around April the 11th, about the time I was doing

27 the examination.

28 Q. Is that contained in your report?

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1 A. I don't believe so, no.

2 THE COURT: Of what year?

3 THE WITNESS: Of April, sorry, 1999.

4 MR. ANDRIAN: Q. You mean 2000. You wouldn't

5 have --

6 A. 2000. You are correct. April 2000, sorry.

7 Q. What about Tanya?

8 A. Yes, I did.

9 Q. And what did you do?

10 A. I left a phone message at her place of work, a phone

11 number that I had off of the computer. I received a phone

12 call from an attorney, and she declined to speak with us.

13 Q. Who was the attorney?

14 A. I don't recall the name.

15 Q. Is that noted in your report?

16 A. No, it's not. I notified Mr. Arden. He requested I

17 attempt to contact her.

18 Q. When did you do that? Not when did you notify

19 Mr. Arden, but when did you attempt to reach Tanya?

20 A. That would have been April or May 2000 as well.

21 Q. And on either of those instances, why were you

22 attempting to do that?

23 A. I would have preferred to interview Ms. Wallensten

24 and ask her about her relationship with Mr. Rodriguez, and

25 the same for Tanya, Ms. Peskova.

26 Q. To find out whether, in fact, they were exchanging

27 e-mails, among other things?

28 A. Yes.

1 Q. You made mention, and, again, for clarification

2 purposes, I think the Judge at one point asked you a

3 question as to whether EnCase, in fact, was some sort of a

4 law enforcement agency or something. I believe you said it

5 was not?

6 A. That is correct.

7 Q. It is a private business? Is that what it is?

8 A. Yes, sir, it is. Guidance Software Incorporated

9 manufactures EnCase.

10 Q. Just also to clarify, in your direct examination,

11 you made some mention of having some -- and, again, this is

12 based on a problem of my ignorance more than anything. But

13 explain to me that you said that you couldn't be certain

14 regarding the times on the e-mails. Why was that? You made

15 some mention about the times that you were running e-mails

16 that they could be off?

17 A. Oh, traditionally when we first examine a computer,

18 we look at what's called the basic input/output system

19 settings, and those settings tell the computer whether it's

20 going to start from the hard drive or from the floppy drive

21 or from a CD-ROM drive.

22 And that is tradition in a -- among other things,

23 and that is traditionally where the month and time are set

24 on a computer. I was unable to check those on this

25 particular computer because it utilizes a different kind of

26 keyboard than I had available, that the keyboard germane to

27 this case was not taken. So I was not able to check those

28 specifics.

1 So once I looked at the pattern of dates or times
2 that were in there and found them to be consistent with up
3 to the time that the computer was seized and that they were
4 sequential and there didn't appear to be any aberrations, I
5 didn't feel that it was necessary at that point.

6 MR. ANDRIAN: That's all the questions I have,
7 Your Honor.

8 THE COURT: Mr. Arden.

9 MR. ARDEN: Thank you very much.

10

11 REDIRECT EXAMINATION

12 MR. ARDEN: Q. Mr. Andrian asked you questions
13 regarding cases with reference to EnCase. Are you aware of
14 any case where EnCase has been used in a case before a Court

15 where it has not been accepted as a reliable tool of forensic
16 computer analysis?

17 A. I am not.

18 Q. You mentioned that there are some other agencies
19 involved in the use of EnCase. Could you please describe to
20 the Court what type of agencies use this particular
21 software, please?

22 A. From my involvement in the High-Tech Crime
23 Investigative Association and the list that I spoke of
24 earlier, I know that the U.S. Customs and U.S. Secret Service
25 both use EnCase. It is taught in part of the curriculum at
26 the Federal Law Enforcement Center at Glynco, Georgia, used
27 by approximately 2000 law enforcement agencies across the
28 United States, which is roughly the same number of agencies

1 that have a high-tech unit. Also worldwide I am familiar
2 with that from some of my reading in the country.

3 Q. Are you aware of any law enforcement agencies that
4 decline to use that particular software in examining hard
5 drives in cases?

6 A. No, I'm not.

7 Q. You have indicated earlier that in your field, that
8 in your expertise, that this particular software is
9 generally accepted in that community as the standard; is
10 that correct?

11 A. Yes.

12 Q. Are you aware of any indications -- are you

13 familiar with software commonly as modified and newer

14 versions are coming out for -- like, example, with Windows?

15 A. Yes.

16 Q. I would assume that the same applies in EnCase; is

17 that correct?

18 A. Yes. There are different versions that are both

19 available to a person who purchases it, and then there are

20 periodic upgrades as functionality is increased or modified.

21 Q. Now, with the modifications, different versions as

22 time goes on, are you aware of any indication that there

23 have been problems with -- for example, like Windows has

24 bugs and people report bugs in Windows. Microsoft tries to

25 resolve those issues for lost screens, frozen computers, and

26 so forth. What about EnCase?

27 A. My understanding from my training of the upgrades is

28 that they are the result of requests by the users. For

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1 example, now there is a button on the tool bar which they

2 refer to by somebody's name -- it escapes me now -- where you

3 can de-select all of the items that had been selected. And

4 that was a result of that individual writing in to the owner

5 of EnCase, Sean McCreight, and saying this is difficult and

6 problematic having to individually de-select all of these

7 items. So as they receive information like that, it's very

8 common for me to receive an e-mail from the company

9 periodically that they have a new version that's out.

10 Q. My question is, are you aware of any indication

11 that the software has bugs or is creating problems or is

12 misreading computer data?

13 A. Not in the misreading. There's been issues where

14 the program might freeze or hang because of the coding, and

15 then they changed that, but I am not aware of anything where

16 it's misread or miscopied evidence.

17 Q. You've indicated -- Mr. Andrian was asking about

18 the copy, what are the odds of two mirror images with two

19 different contents, and you refer to the HASH value as being

20 different. When you duplicate something in EnCase, you are

21 indicating you are getting an exact copy of it, correct?

22 A. Yes. Bit for bit, byte for byte, including slack

23 space, which is the area at the end of a file which may

24 contain data from a file that was there prior to it.

25 Q. Was a copy available for defense for examination?

26 In other words, you indicated before you couldn't print out
27 hard copies of every bit of information on that particular
28 hard drive because of the amount of paper. Was a copy of

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1 the -- what I assume would be on a CD-ROM or whatever, zip,
2 available to the defense?

3 A. Yes. We're able to store that or maintain it or
4 proffer it for discovery for the Court's use in a number of
5 formats. I can either copy the individual evidence files on
6 to CD -- in this case I set the parameters to be at 600
7 megabytes so I could put it on individual CDs. I have the
8 original hard-copied drive that I had, and if need be -- and
9 sometimes we actually do this during a forensic exam -- I

10 would acquire that image over to a blank hard drive and

11 actually install it in the suspect computer. So if

12 necessary, if the defense or another agency didn't have

13 EnCase, we are able to give them an exact copy of the hard

14 drive.

15 Q. To what extent can EnCase be tested by a third

16 party to make sure that everything is clearly right from

17 your evaluation?

18 A. EnCase is available on the general marketplace.

19 It's not sold specific to law enforcement. It's available

20 for purchase by anybody, including private citizens. I am

21 aware of tests that have been done by various agencies that

22 have purchased it, and I've done some testing of it on my

23 own.

24 Q. And through that test -- what were the tests that
25 you were doing? Was it to see if it was working properly or
26 what?

27 A. As I testified earlier, prior to this, the exams I
28 conducted I didn't have EnCase, so I used what at the time

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1 were conventional DOS serve, which stands for Disk Operating
2 System, tools such as diskettes. As I testified earlier, I
3 used a personal hard drive that I had first, and I went in
4 using diskettes and looked at bits of data.

5 And in this particular instance, I put in a picture
6 and hid it in a place on the hard drive, and then with
7 EnCase I went back in and acquired an image of that hard
8 drive and looked to see if I could find that picture that I

9 had found with the other software. And that's in substance

10 what generally the agencies do that I've read about the

11 testing is hide evidence or put evidence on or data on and

12 look to see if EnCase finds it.

13 Q. Are you aware of any, through your use of EnCase,

14 any problems that you've had in interpreting the data,

15 reading data?

16 A. No, I have not had any.

17 Q. If I'm understanding this correctly, the primary

18 reason that you use EnCase is to visualize something,

19 correct?

20 A. Correct.

21 Q. So when you use EnCase, you read it as an

22 investigator in a criminal action. It's not creating a

23 bunch of opinions. Is that what you're saying?

24 A. The program does not, no.

25 Q. Has EnCase been subjected to any publications in

26 the industry that you are aware of?

27 A. Yes, it has. And as a matter of fact, this reminds

28 me of an issue that Mr. Andrian asked me about. I did bring

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1 with me today -- as I said earlier, I've read about it in

2 several journals that I subscribe to, but I printed out three

3 different articles, one from the Institute of Electrical

4 Electronic Engineers, an article which talks about the use of

5 EnCase.

6 And in your question earlier, Mr. Andrian, if I was

7 aware of it being used in a criminal case in California, the

8 Jeremy Strohmeyer case which was the young woman who was

9 found murdered in the casino restroom.

10 MR. ANDRIAN: Las Vegas.

11 THE WITNESS: In that case the Los Angeles High-Tech

12 Crimes Task Force used EnCase to process the evidence

13 belonging to Mr. Strohmeyer.

14 I also brought a copy of a July 24 article from the

15 Government Computer News speaking about the Army debugging

16 their information, and a second article out of I Triplet

17 Computer Dot Org, online magazine, speaking about EnCase.

18 All of the articles were favorable.

19 MR. ARDEN: That's all I have. Thank you.

20 MR. ANDRIAN: I have no other questions.

21 THE COURT: I have a question.

22 THE WITNESS: Yes, ma'am.

23 THE COURT: In the Jeremy Strohmeyer case, they were

24 looking for child porn on the computer; is that right?

25 THE WITNESS: I know that they found child porn,

26 Your Honor. I don't know what they were originally looking

27 for.

28 THE COURT: My question to you is, is this -- are

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1 these images purported to be images that were pulled off the

2 Net?

3 THE WITNESS: I don't know the originations in that

4 case of where those images came from. They were resident on

5 the computer, according to the article, but where they came

6 from I don't know.

7 THE COURT: You don't know whether they were pulled

8 off the Net or whether they were scanned in the computer?

9 THE WITNESS: No. I am not familiar with the facts

10 in that case.

11 THE COURT: Okay.

12 MR. ANDRIAN: No other questions.

13 THE COURT: I don't have any more. Thanks.

14 MR. ARDEN: As far as the issue on the e-mails, the

15 People rest. We have no further witnesses on that evidence.

16 We ask the Court to allow the People to be allowed to

17 introduce the information regarding the e-mail correspondence

18 that the defendant had made on the computer, certainly up

19 near the time that he committed the crimes in this particular

20 case.

21 We believe that there's been certainly not only by a

22 preponderance of the evidence, but even more so through

23 Investigator Hudson, that his use in examination of this

24 computer shows that there are only two users of this

25 particular computer that was seized out of this house shortly

26 after the burglary in this case, and the data shows without a

27 doubt that --

28 There was a physical address in that hard drive.

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1 This happened to be where the defendant had been living. It

2 had the defendant's name on that particular computer. It

3 also had nine digital images of the defendant and no other

4 male images on that hard drive. The e-mails had

5 correspondence and the subject of which would be only known

6 by the defendant to the particular case.

7 And the Evidence Code 14 -- of course,

8 authentication, the first part Mr. Andrian was objecting to

9 is in the 1400 of the Evidence Code. It's 1421, matters

10 unlikely to be known by persons other than claimed the

11 author -- "A writing may be authenticated by evidence that

12 the writing refers to or states matters that are unlikely to

13 be known or -- to anyone other than the person who is claimed

14 by the proponent of the evidence to be the author of the

15 writing."

16 We have so many different things on this hard drive

17 that suggest that he is the one sending out that e-mail and

18 nobody else. And I've listed those. I began with the
19 physical address, Franklin Avenue, his name; his name changed
20 to Mat Trafton, his digital images, his sending out e-mail to
21 his second ex-wife, corresponding with her, references to
22 shotguns, helicopters, things that were -- that he was
23 interested in. All of these under 1421 would certainly
24 indicate that this type of information is authenticated
25 because it again is matters or topics that are generally
26 known in this particular case to the defendant.

27 And under 1410, "Nothing in this article shall be
28 construed to limit the means by which a writing may be

1 authenticated or proved."

2 Mr. Andrian suggests why don't we call the recipient

3 of the e-mail. My thought about -- and I thought about that,
4 and actually we discussed that with someone that knows a lot
5 more about computers than I do, Mr. Hudson, and that would be
6 very wrong in this case. Because if you sent me an e-mail,
7 and I get it, and I am trying to authenticate that you wrote
8 it, so I come and I look at your hard drive and say, "Oh,
9 yeah, that's -- I recall that e-mail getting to me," but
10 that's all I'm looking at.

11 Here we have a forensic examiner looking at the
12 computer found in this particular house, looking at the
13 totality of the evidence surrounding that particular e-mail,
14 making a competent evaluation of who the users are in sending
15 out this particular e-mail.

16 To suggest for me to be more confident to say that

17 you wrote a particular e-mail, a recipient of an e-mail I
18 submit is not a proper way to authenticate an e-mail. How
19 could I as a lay person say you wrote an e-mail and I know
20 you wrote that e-mail other than I know I received an e-mail
21 that said Judge Ballinger on it, okay. That's what
22 Mr. Andrian originally suggested that's the proper way to
23 authenticate this.

24 Now we are living in, of course, a more high-tech
25 society. When the original Evidence Code of 1400 where we're
26 looking at handwritten documents, and someone that's familiar
27 with a handwriter would come in and say, "That's Mr. Arden's
28 handwriting. I am familiar -- I have seen him write before,

1 and I know that's his handwriting," and that would be

2 sufficient foundation for authentication.

3 Here we are talking about digital information, so we

4 have to look a little bit further, much further in this case

5 with what Mr. Hudson did in attempting to authenticate, and

6 it would be highly improper and I submit error to suggest

7 let's get the recipient, not an examiner but a recipient of

8 an e-mail to authenticate what it said. So what Mr. Hudson

9 did is listed -- actually many more things than I did, that

10 point to that person, that person right over there is the

11 author of the e-mail.

12 We can suggest, well, he hasn't proved that there

13 wasn't somebody else that came into that house that actually

14 wrote that e-mail. I can go into his house and write

15 Mat Trafton and send it out, but he took all of that into
16 consideration, looked at the timing and so forth, and it
17 should go to weight and not admissibility.

18 The jury may say, okay, it's just a little bit.

19 I'll give it a little bit of weight. But it should be
20 something where the jury should be not -- should not hear
21 this evidence. Again, it goes to intent in this case. I
22 don't know what he is going to say, but this is highly
23 relevant, highly probative that this e-mail -- and we're
24 asking only limited information. There was a lot more on
25 that hard drive about things and bizarre things, but we're
26 only asking for stuff that we feel is relevant to his
27 criminal action on July 4th.

28 So I'm asking the Court at this time to allow us to

1 enter this. We certainly recognize 352. We are not asking
2 the Court to introduce other stuff that's criminal on the
3 hard drive but it's not relevant to this particular case. So
4 we've actually narrowed down a lot of information.
5 Mr. Andrian knows that, and I think he knows why we want that
6 information on there, not to say he is a bad person but it
7 goes to intent. Thank you.

8 THE COURT: Mr. Andrian.

9 MR. ANDRIAN: Your Honor, first of all, on relevance
10 issue I think we are going to have to take each e-mail
11 separately and discuss each separate e-mail separately in
12 terms of relevance issue. Clearly, if the Court were to
13 admit any of these, they would have to be redacted because of

14 the bold print which is editorial comments by Mr. Hudson.

15 That would have to be removed.

16 The real purpose of this hearing from my perspective

17 has been on the issue of authentication. Coming into this

18 case I did some research and could find no case that I was

19 aware of where EnCase or an equivalent of EnCase had been

20 used, and I am not aware of a case where EnCase has been used

21 to authenticate a writing.

22 That being the case, I felt I had to go back and

23 look at the basic Kelley-Frye rules about something that is

24 new, which it is new, doesn't mean that it's not the

25 standard, but the Kelley-Frye standard talks about general

26 acceptance in the community. Kelley-Frye standard talks

27 about the suggestion that normally you want to have more than

28 one person authenticating that when it's in that state.

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1 I have to concede, you know, in all fairness that

2 Mr. Hudson and Mr. Arden make a very compelling argument. I

3 mean, I am not going to belittle their competence here. They

4 both did a very good job of putting forward those sort of

5 things that might suggest that this is a proper mode of

6 authentication. However, I still know of no recognized

7 acceptable case or criteria where EnCase has been used.

8 I have had some prior experience with EnCase, and it

9 has been more in the vein of saying this is a true and

10 correct copy of that which came from the computer, since that

11 is a tool that had been used, but I know of no case. Maybe

12 now we are here charting new ground. I don't know. As I

13 say, they make a compelling argument. I am not here to

14 belittle their argument, but I know of no case or authority.

15 And if -- I think we all might take a look at Kelley-Frye.

16 Again, seems to me that more is required than what's been

17 presented here, not in any way degrading what's been

18 presented.

19 THE COURT: Mr. Arden, what's your position on

20 whether or not the Kelley-Frye issue --

21 MR. ARDEN: Well, Mr. Hudson, I know, has been doing

22 a lot of research since we originally thought this was

23 authentication type 402, and then there was mention of the

24 Frye-Dalbert type analysis. And I know Mr. Hudson has been

25 working on that while we have been picking a jury, and we

26 have run across some --

27 You know, again, this is -- we're living in an age

28 where technology is becoming more and more important, and

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1 there is a lot of writing through his associations regarding

2 the use of EnCase, and he's provided actually some discussion

3 where the federal court is using EnCase and they refer to the

4 Federal Rules of Evidence 901(b)(9), where there's

5 presumption of authenticity to evidence generated by or

6 resulting from a largely automated process or system that is

7 shown to produce an accurate result.

8 And in the discussion there's been mention that the

9 EnCase really shouldn't even be subjected to Kelley-Frye. We

10 are talking about just like x-rays, or -- you know, this is

11 not something we're talking about some bizarre thing how a
12 scrolling affects something or whatever. We are talking
13 about computer examination. Either it's there or it is not
14 there. That's all, okay.

15 Mr. Andrian can say -- well, he goes a little bit
16 further and says, you know, he is saying that Mr. Rodriguez
17 wrote those. Now we are getting into an opinion here, and
18 maybe we should subject that to Kelley-Frye, but he is merely
19 stating to the Court what he has seen on that computer, okay,
20 that there are no other users that he could see, and he knows
21 that Mat Rodriguez was using that.

22 And, again, we fall back to Evidence Code 1421 when
23 we are authenticating things, but I believe also the
24 testimony shows that Kelley-Frye has been proven. This is a

25 reliable source. He stated it. There is no known source

26 saying this is unreliable. Okay.

27 Every forensic agency that's examining computers is

28 using that particular software. There is no known case

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1 saying that this is unreliable or should not be used, so the

2 Court has to look at are we talking about something here that

3 is really way out there in the mainstream or something that

4 he's coming in and saying what he saw. He used a particular

5 software to look at it. We are not talking about something

6 that is creating all of these things just based on opinion.

7 He is saying what he saw there, and I believe it is

8 authenticated, and if the Court even feels that it should go

9 through Kelley-Frye process, he certainly laid that proper

10 foundation that it is highly reliable. There is no

11 indication whatsoever that he was doing anything wrong. He

12 checked it, you know, more than once certainly.

13 This was as available to the defense. They had an

14 opportunity to examine, to see if there's something there

15 that Mr. Hudson is not telling us. So, again, I believe that

16 this should be admitted, and whatever weight the jury gives

17 to it, so be it. But, again, it's highly relevant. We've

18 laid the proper foundation, not only in authentication but

19 also if there's any issue to Kelley here, that that's clear

20 on the record and the Court should admit it. Thank you.

21 MR. ANDRIAN: I just want to make a brief reply,

22 Your Honor. I am not in any way disputing that the

23 mechanical process is unscientific. In other words, I am not

24 suggesting that one of these e-mails contains writing that

25 aren't on the hard drive. I think to that extent my reading

26 supports that view, that the EnCase methodology of removing

27 items from a computer is appropriate and accepted.

28 What I have not found is any authority that suggests

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1 that an EnCase report is a means to authenticate the producer

2 of it. That's all. I am not disputing that it works and

3 that it took off this computer that which was on the

4 computer. I have no reason based on what Mr. Hudson has

5 said, what little knowledge I have of EnCase, and it's

6 certainly not much compared to him. I am not aware of any

7 authority to permit it and, again, the prosecutor makes a

8 compelling argument. I am just resting on the fact that I
9 haven't found any authority, and I leave it to the Court's
10 good judgment.

11 THE COURT: I am going to let it in, what's relevant
12 in the stuff that's been submitted to the Court. I know that
13 Mr. Andrian doesn't have every page this Court does, and if
14 we are going page by page to talk about relevance in 352
15 issues, we have to all have the same things before us.

16 MR. ARDEN: I know he has actually more than the
17 Court does.

18 MR. ANDRIAN: I do, but the pages that we flagged
19 when we got together, I have them here as we flagged them. I
20 prepared them in a separate binder, and turns out when the
21 Judge was reading the pages, it seemed like I didn't have the

22 same pages that she had. So if the Court wants to at this

23 point indicate the pages that it has. And if you are going

24 to let it in, Your Honor, do you agree with me that you can't

25 have the black? That has to be --

26 THE COURT: Yes.

27 MR. ARDEN: I have no objection to that. That part

28 is a bookmark from Mr. Hudson, and that certainly should not

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1 be viewed as evidence whatsoever.

2 THE COURT: I'll go back over the EnCase report

3 pages that I have in front of me, and I guess I need to

4 confirm if these are the pages that Mr. Arden wishes to

5 admit.

6 MR. ANDRIAN: And also on some of them there is more
7 than one e-mail, so it's hard to ascertain for sure which
8 e-mails they are, so if we can first at least do the pages
9 first and then maybe come back.

10 MR. ARDEN: Mr. Hudson -- I'm asking him to sit next
11 to me because he could, of course, redact anything, first of
12 all the bookmarks and so forth, so he will go through with me
13 here. I believe we are starting on 16.

14 MR. ANDRIAN: Okay.

15 THE COURT: I've got 16.

16 MR. ARDEN: On 99 -- 91, bookmark 91.

17 MR. ANDRIAN: Counsel, can we maybe go through the
18 pages? Go through the pages first and then -- just to make
19 sure we are working with the same pages first so I can get

20 mine in order.

21 MR. ARDEN: Page 16.

22 THE COURT: Yes.

23 MR. ARDEN: What I have told counsel, I am not

24 interested in the first part.

25 MR. ANDRIAN: No, no. Just indulge me with the

26 numbers of the pages so that as we go through I have the

27 pages.

28 MR. ARDEN: Page 16, page 17, page 18, page 34.

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1 THE COURT: I've got page 32.

2 MR. ARDEN: I'm sorry. Actually, the e-mail starts

3 at 32 and the relevant portion is on page 34, but --

4 MR. ANDRIAN: Okay. Because I didn't have 32 and

5 33. So fine. Thank you.

6 THE COURT: I am not considering anything on 32 or

7 33.

8 MR. ARDEN: Well, we should have the header there

9 and maybe the salutation, but he can redact everything

10 thereafter from 32, 33.

11 MR. ANDRIAN: May I make a request that might speed

12 this process up? And I don't mean to pass the buck back to

13 the DA, but perhaps if Mr. Hudson has -- since Mr. Hudson has

14 these skills, the District Attorney could Tuesday morning

15 indicate those portions of the e-mails that they wish to

16 introduce by --

17 If you are only wanting to introduce parts of them

18 anyway, then we have to redo them anyway, wouldn't we if you

19 are not going to introduce two-thirds of an e-mail, what we
20 would do with the rest of it, and that way I can decide, if
21 he can get them to me, whether I oppose them or not oppose
22 them, or whether I think maybe all of it should be put in.

23 Under 356 I have a right to have the entire thing
24 put in context, and I may choose to do that, but if maybe the
25 prosecutor -- if we could first at least get the pages
26 established, and then they could identify for me a single
27 document, those portions they wish to introduce, that might
28 make it faster.

1 THE COURT: I am suggesting that you do what we do
2 in Word Perfect when you're amending a document, that we can

3 have the full page, then there could be -- you could do it in

4 an italicizing or some kind of strip that would show what

5 portions you want to delete.

6 MR. HUDSON: Your Honor, I can certainly do any of

7 that. This is easily exportable out of -- I can put one

8 e-mail per page and then the Court and counsel can decide

9 what they want, and I can go back and redact out, using

10 Word Perfect, what the Court determines should not be in

11 there, or I can -- it's very functional. I can do whatever

12 the Court needs.

13 THE COURT: It looks like there's a lot of what's on

14 these pages that Mr. Arden is already saying that he doesn't

15 want, so I am just trying to think, as Mr. Andrian is, how to

16 save time doing this.

17 MR. ANDRIAN: My suggestion to the District

18 Attorney, Your Honor, was that they decide which portions

19 they wish to introduce. Then they could hand that to the

20 Court and to me in a document saying these are the portions

21 of the various e-mails we want to introduce. We could first

22 argue their general relevance, if there is any, and then I

23 may ask the Court under the circumstances, because maybe I

24 feel it's taken out of context or something like that, that I

25 may want to have other portions read, or I may agree that

26 only those portions should be read if the Court rules they

27 are relevant.

28 So it seems to me that would be the way that might

1 expedite this rather than us sitting here reading every one

2 of these e-mails trying to figure out what part they want to
3 get in.

4 And before we get too far afield, can we finish the
5 pages, too?

6 THE COURT: We are on 34.

7 MR. ARDEN: 35, 36.

8 THE COURT: I don't have page 35.

9 MR. ANDRIAN: I do.

10 THE COURT: The Court now has page 35.

11 MR. ARDEN: 36, 37, 38, the top part of 38, 39, 41,
12 42, 43, 44. There's also digital image of the defendant

13 that's not a page.

14 MR. ANDRIAN: Right.

15 MR. ARDEN: And -- well, I didn't -- and then also a

16 woman bound, it's not a page number, but I believe --

17 Mr. Andrian's assistant shared the day we met.

18 MR. ANDRIAN: I have that marked, okay.

19 MR. ARDEN: I believe that's it.

20 THE COURT: And just the -- these other two pages

21 that the Court has?

22 MR. ARDEN: That's 34 -- 34 and 35, right?

23 THE COURT: No. This is something else. Do you

24 want to come take a look at what it is?

25 MR. ARDEN: Yes. I'll remove those. I think

26 that's --

27 THE COURT: A lot of it is programming information,

28 it looks like.

1 MR. ANDRIAN: We're kind of working out the details
2 of how we are going to do this. We'd like what I was
3 suggesting that maybe I can meet him before court on Tuesday
4 and he can give them to me half an hour, an hour before court
5 so I have a chance to see what it is. I know he is planning
6 to take the day off tomorrow. If he says he can do it in
7 time for Tuesday, that's fine with me.

8 THE COURT: All right. And then on Tuesday morning
9 we are going to have some witnesses or something on the
10 handwritten notes?

11 MR. ARDEN: Yes, the one witness. And that's at
12 10:00 or 10:30?

13 THE COURT: I'd like to have people here at 10:00.

14 I can't promise we are going to get going because you know I

15 have a whole another group of trials I need to get resolved

16 this morning, so...

17 MR. ARDEN: I just want to make sure, does the Court

18 have copies of the handwritten notes that -- that's the issue

19 and authentication?

20 THE COURT: I'll give you the number I have.

21 I've got 14 pages and what looks like an address,

22 copy of address, envelope, pay sheet --

23 MR. ANDRIAN: How many pages did you say,

24 Your Honor?

25 THE COURT: 14.

26 MR. ANDRIAN: 14. Do those include the photograph

27 and the --

28 MR. ARDEN: No. We're talking about the

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1 handwritten. You have 14 pages.

2 THE COURT: That's what I just counted.

3 MR. ANDRIAN: We got it together, Your Honor, I

4 think.

5 THE COURT: I'm glad.

6 MR. ANDRIAN: Are we in recess until Tuesday at

7 10:00?

8 THE COURT: Yes.

9 (Whereupon, the proceedings were adjourned.)

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1 REPORTER'S CERTIFICATE

2 STATE OF CALIFORNIA]

] ss.

3 COUNTY OF SONOMA]

4

5 I, SANDRA L. CARRANZA, do hereby certify that I am

6 a Certified Shorthand Reporter of the Superior Court of the

7 State of California, in and for the County of Sonoma, and

8 that as such I reported in stenotype the proceedings had in

9 the within-entitled matter at the time and place therein set

10 forth; and that the same is a full, true and correct

11 transcription of said stenotype notes as taken by me in said

12 matter.

13 DATED: Santa Rosa, California, this 19th

14 day of March, 2001.

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21 SANDRA L. CARRANZA, CSR NO. 7062

CERTIFIED SHORTHAND REPORTER

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